INDEPENDENT CONTRACTOR AGREEMENT

Hartfelt Real Estate LLC

This Independent Contractor Agreement ("Agreement") is entered into as of _____ ("Effective Date"), by and between:

Hartfelt Real Estate LLC, a Florida limited liability company ("Brokerage"), and

_____, a licensed real estate professional ("Agent").

1. RELATIONSHIP OF THE PARTIES

1.1 **Independent Contractor Status**

Agent is engaged as an **independent contractor**, not an employee. Nothing in this Agreement shall be construed to create an employer-employee relationship, partnership, joint venture, or agency relationship beyond that required by Florida real estate law.

1.2 **No Authority to Bind Brokerage**

Agent has no authority to bind the Brokerage except as expressly authorized and required in connection with licensed real estate activities.

2. LICENSE & COMPLIANCE

2.1 **License Requirement**

Agent represents that they hold an active and valid Florida real estate license and will maintain such license in good standing at all times.

2.2 **Compliance with Law**

Agent agrees to comply with:

- Florida Statutes Chapter 475
- DBPR / FREC rules
- MLS rules and regulations
- Brokerage policies and procedures
- All applicable federal, state, and local laws

Failure to comply constitutes grounds for immediate termination.

3. BROKER SUPERVISION

3.1 **Broker of Record Oversight**

Agent acknowledges the Broker of Record's duty and authority to supervise:

- Transactions
- Advertising
- Escrow handling
- Technology and AI use
- Compliance matters

3.2 **Transaction Files**

Agent must submit complete and timely transaction files as required by Brokerage policy.

4. COMPENSATION

4.1 **Commission-Based Compensation**

Agent shall be compensated solely through commissions or permitted brokerage compensation arrangements as set forth in a separate **Commission Schedule or Addendum**.

4.2 **No Guarantees**

No minimum compensation, salary, draw, or benefits are guaranteed.

4.3 **Disbursement**

Commissions are payable only after:

- Closing occurs

- Funds are received by the Brokerage
- Required documentation is complete

5. EXPENSES & TAXES

5.1 **Agent Expenses**

Agent is responsible for all business expenses, including but not limited to:

- Licensing and continuing education
- MLS and association dues
- Marketing and advertising
- Transportation
- Technology not provided by Brokerage

5.2 **Taxes**

Agent is solely responsible for all federal, state, and local taxes. Brokerage will issue IRS Form 1099-NEC as required.

6. ADVERTISING & BRANDING

6.1 **Approval Required**

All advertising, marketing, and branding must comply with Brokerage policies and applicable law.

6.2 **No Misrepresentation**

Agent may not make false, misleading, or unapproved claims, including guarantees of pricing, investment returns, or outcomes.

7. SMARTBUY & TECHNOLOGY USE

7.1 **Approved Use Only**

Agent may use Brokerage-approved technology and programs (including SmartBuy) only in accordance with Brokerage policies and disclosures.

7.2 **No Guarantees or Advice**

Agent shall not represent SmartBuy or any technology as:

- Automated decision-making
- Investment advice
- Guaranteed results

8. CONFIDENTIALITY & DATA SECURITY

Agent agrees to protect all confidential and personal information in accordance with the Brokerage's **Privacy Policy & Data Security Policy**, including wire fraud safeguards.

9. INDEMNIFICATION

Agent agrees to indemnify and hold harmless the Brokerage, Broker of Record, and affiliated parties from any claims, losses, or damages arising from Agent's negligence, misconduct, or violation of law or policy.

10. TERM & TERMINATION

10.1 **At-Will Relationship**

This Agreement may be terminated by either party at any time, with or without cause, subject to Brokerage policies.

10.2 **Effect of Termination**

Upon termination:

- Agent must cease use of Brokerage branding and systems
- All files and records must be returned
- Commission rights, if any, are governed by the Commission Schedule and Brokerage policy

10.3 Pending Transactions and Commission Protection

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- If Agent's affiliation with Brokerage terminates prior to the closing of a transaction in which Agent participated, Brokerage retains the sole discretion to determine the appropriate commission allocation.
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- Brokerage may adjust the commission split to account for continued supervision, compliance review, administrative work, and management required to complete the transaction.
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- Brokerage shall also retain the right to deduct any applicable transaction fees, referral obligations, or outstanding balances owed by Agent.

11. NON-SOLICITATION & CONFIDENTIAL INFORMATION

Agent agrees not to solicit Brokerage clients, agents, or confidential information in violation of Brokerage policy following termination.

12. GOVERNING LAW

This Agreement shall be governed by and interpreted in accordance with the laws of the **State of Florida**.

13. ENTIRE AGREEMENT & AMENDMENTS

This Agreement, together with Brokerage policies and addenda, constitutes the entire agreement between the parties and may be amended only in writing.

14. ACKNOWLEDGMENT

Agent acknowledges receipt of and agreement to comply with all Brokerage policies, including but not limited to:

- Fair Housing Policy
- RESPA & Anti-Kickback Policy
- Privacy & Data Security Policy
- Record Retention Policy
- Compliance Addendum

SIGNATURES

BROKERAGE:

Hartfelt Real Estate LLC

By: _____

Name: Antione Hart

Title: Broker of Record

Date:

AGENT:

Signature: _____

Printed Name: _____

License #: _____

Date: _____

EXHIBIT A

HARTFELT REAL ESTATE – FOUNDING AGENT COMPENSATION PLAN

This Exhibit A is incorporated into and made part of the Independent Contractor Agreement between **HartFelt Real Estate LLC ("Brokerage")** and **Agent**.

1. Commission Split

Agent shall receive **seventy-five percent (75%)** of the gross commission earned on transactions in which Agent is the procuring cause.

Brokerage shall retain **twenty-five percent (25%)** of the gross commission.

2. Annual Cap

Agent's commission split obligation to Brokerage shall be capped at **$25,000 per calendar year**.

Once Agent has paid a total of **$25,000 to the Brokerage through commission splits**, Agent shall retain **100% of commission** for the remainder of that calendar year.

3. Transaction Fee

Agent agrees to pay a **$395 transaction processing fee** to Brokerage for each closed transaction.

This fee applies **both before and after the commission cap is reached**.

The transaction fee may be deducted from Agent's commission at closing.

4. Commission Definition

"Gross Commission" means the total commission received by Brokerage from the transaction before deductions, fees, or expenses.

5. Payment of Commission

Commissions shall only be paid after:

• Transaction closing

• Funds are received by Brokerage

• Complete transaction file is submitted and approved

6. Founding Agent Status

This compensation structure is offered to **Founding Agents of HartFelt Real Estate** and may be subject to limitations as determined by Brokerage.

Brokerage reserves the right to modify compensation structures for future agents.

7. Broker Discretion

Brokerage reserves the right to adjust commission allocations when required to resolve disputes, referral obligations, or co-brokerage agreements.

Acknowledgment

This Exhibit A constitutes the **Agent's commission and compensation agreement** with HartFelt Real Estate LLC and is incorporated into and made part of the Independent Contractor Agreement between the parties.

By signing below, Agent acknowledges that they have read, understood, and agreed to the compensation terms outlined in this Exhibit.

Signatures

Agent: _____

Name: _____

Date: _____

Broker: _____

Antione Hart

HartFelt Real Estate LLC

BROKERAGE LEAD FEE ADDENDUM

*This policy forms part of the **Hartfelt Real Estate Brokerage Policies & Procedures** and applies to all affiliated licensees.*

Effective Date: January 1, 2026

This Brokerage Lead Fee Addendum ("Addendum") supplements the **Independent Contractor Agreement** and **Commission Agreement** (collectively, the "Agreements") between **Hartfelt Real Estate LLC ("Brokerage")** and the undersigned licensed real estate professional ("Agent").

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1. PURPOSE

This Addendum establishes commission splits and compensation terms applicable only to **Brokerage-Generated Leads**, including marketing, technology, concierge, ISA, and SmartBuy-sourced opportunities.

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2. DEFINITION OF BROKERAGE-GENERATED LEADS

"Brokerage-Generated Leads" include, but are not limited to:

• Brokerage-paid advertising (online, social, portals, print)

• Brokerage website or CRM inquiries

• SmartBuy Program leads

• ISA, concierge, or AI-assisted intake

• Investor funnels or off-market sourcing funded or operated by the Brokerage

Unless otherwise agreed in writing, **all Brokerage-Generated Leads, related contact information, client records, and associated data shall remain the sole and exclusive property of the Brokerage**, before, during, and after Agent's affiliation.

Agent is granted a **limited, revocable right** to service Brokerage-Generated Leads only while affiliated with the Brokerage and in compliance with Brokerage policies.

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3. FOUNDING AGENT DESIGNATION

For purposes of this Addendum, a **"Founding Agent"** means an agent who has been **formally designated by the Brokerage in writing as a Founding Agent** and who qualifies for the Founding Agent commission structure established by the Brokerage.

Founding Agent status:

• is determined solely by the Brokerage

• must be confirmed **in writing**

• may be limited to early agents affiliated during the initial formation and growth phase of the Brokerage

• may be modified or discontinued by the Brokerage for future affiliations

Nothing in this Addendum guarantees that an Agent will be designated as a Founding Agent.

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4. COMMISSION SPLIT STRUCTURE

(BROKERAGE-GENERATED LEADS ONLY)

Founding Agent Split

- **Agent: 75%**
- **Brokerage: 25%**

This split applies only to agents designated by the Brokerage **in writing as Founding Agents**.

Standard Agent Split

- **Agent: 70%**
- **Brokerage: 30%**

This split applies to all other agents unless otherwise agreed in writing by the Brokerage.

Premium / High-Cost Leads

The Brokerage reserves the right to assign a **different commission split** for certain high-cost or premium leads involving elevated Brokerage investment, including but not limited to:

- SmartBuy premium funnels
- Investor or off-market sourcing

• Concierge or ISA-intensive services

• High-cost or experimental marketing channels

Any modified split must be **disclosed in writing at the time of lead assignment**.

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5. SMARTBUY PROGRAM LEADS

• All SmartBuy-sourced leads are deemed **Brokerage-Generated Leads**.

• SmartBuy leads may be assigned under the **Founding Agent Split, Standard Agent Split, or another disclosed split where applicable**.

• Due to enhanced technology, analytics, and execution support, the Brokerage may designate specific SmartBuy leads as **premium or high-investment leads**, subject to written disclosure at assignment.

SmartBuy leads may not be represented as **agent-owned** unless expressly authorized in writing by the Brokerage.

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6. LEAD HANDLING & REVERSION

Agents must **timely respond to and professionally service Brokerage-Generated Leads**.

Failure to follow up, inactivity, or non-compliance may result in:

• lead reassignment

• loss of eligibility for Brokerage-Generated Leads

• reversion of the lead to the Brokerage

No commission is earned unless the **transaction closes**.

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7. RESPA & LEGAL COMPLIANCE

• This Addendum governs **internal compensation only** between Brokerage and Agent.

• No consumer fees, settlement service referrals, or third-party compensation are involved.

• All splits reflect compensation for **marketing, technology, systems, and services actually provided by the Brokerage** and are intended to comply with **RESPA Section 8 and applicable law**.

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8. MODIFICATION & DISCRETION

• Eligibility for **Founding Agent status**, lead assignment, and any modified split remains at the **sole discretion of the Brokerage**.

• Modifications apply **prospectively with written notice**.

• Transactions already under contract will follow the split disclosed at assignment unless otherwise agreed in writing.

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9. ACKNOWLEDGMENT

Agent acknowledges that:

• Brokerage-Generated Leads belong to the Brokerage

• the split applicable to such leads is governed by this Addendum and any written lead assignment notice

• **Founding Agent status applies only if confirmed by the Brokerage in writing**

• premium or high-cost leads may be subject to a different disclosed split

• no income, lead volume, or business opportunity is guaranteed

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SIGNATURES

AGENT

Signature: _____

Printed Name: _____

License #: _____

Date: _____

BROKERAGE

Hartfelt Real Estate LLC

By: _____

Name: **Antione Hart**

Title: **Broker of Record**

Date: _____

BROKERAGE POLICIES & PROCEDURES ACKNOWLEDGMENT

Hartfelt Real Estate LLC

Effective Date: January 1, 2026

This Brokerage Policies & Procedures Acknowledgment ("Acknowledgment") is entered into by and between **Hartfelt Real Estate LLC** ("Brokerage") and the undersigned licensed real estate professional ("Agent").

1. RECEIPT OF POLICIES AND MANUALS

Agent acknowledges that Agent has received access to, or has been provided copies of, the Brokerage's current policies, procedures, standards, and operational materials, which may include, without limitation, the following:

- Advertising Rules & Marketing Policy
- Agent Policy & Procedures Manual
- Broker Supervision Policy
- Brokerage Lead Fee Addendum
- Commission Dispute Resolution Policy
- MLS Usage Policy
- Social Media Guidelines & Digital Conduct Policy
- Social Media Quick Guide
- Standard Operating Procedures (SOP) Manual
- Technology Use Policy
- Transaction File Requirements Policy

2. AGREEMENT TO REVIEW AND COMPLY

Agent agrees to review, understand, and comply with all Brokerage policies, procedures, rules, and standards, as amended from time to time.

Agent understands that compliance with Brokerage policies is a condition of affiliation with the Brokerage.

3. POLICIES MAY BE UPDATED

Agent acknowledges that the Brokerage may revise, update, supplement, or replace its policies, procedures, forms, and manuals from time to time in its discretion.

The Broker expressly reserves the right to modify, amend, update, or discontinue any policy, procedure, or operational guideline at any time, with or without prior notice, to the extent permitted by applicable law.

Agent agrees that:

• updated policies may be delivered electronically;

• continued affiliation with the Brokerage after notice of an update constitutes acknowledgment of and agreement to comply with the updated policy, to the extent permitted by law;

• the Brokerage may require a separate signed acknowledgment for certain updates when deemed appropriate.

4. NO MODIFICATION OF INDEPENDENT CONTRACTOR STATUS

Agent acknowledges that these policies and procedures are intended to promote legal compliance, professional standards, operational consistency, risk management, and brand protection.

Nothing in the policies, manuals, or this Acknowledgment shall be construed to alter the independent contractor relationship between Agent and Brokerage or to create an employer-employee relationship.

5. NO GUARANTEE OF INCOME OR BUSINESS

Agent acknowledges that the Brokerage's policies, manuals, systems, technology, training, support, or operational procedures do not guarantee:

- income,
- leads,
- closings,
- commissions,
- business opportunities, or
- any particular business outcome.

6. QUESTIONS AND CLARIFICATION

Agent agrees to promptly seek clarification from the Brokerage regarding any policy, procedure, or compliance matter the Agent does not understand.

Agent further agrees not to rely on assumptions where Brokerage policy, MLS rules, licensing law, or advertising requirements are involved.

7. CONFLICTING TERMS

If a conflict exists between this Acknowledgment and any separately signed agreement between Agent and Brokerage, the terms of the separately signed agreement shall control to the extent of the conflict, unless otherwise stated in writing.

8. ELECTRONIC DELIVERY AND SIGNATURE

This Acknowledgment may be delivered, accepted, and signed electronically, and any electronic signature shall be deemed binding to the fullest extent permitted by law.

9. ACKNOWLEDGMENT

By signing below, Agent acknowledges and agrees that:

- Agent has received access to or been provided the Brokerage's policies and procedures;
- Agent understands that it is Agent's responsibility to read and comply with them;
- Agent understands that those policies may be updated from time to time; and
- Agent agrees to remain in compliance as a condition of affiliation with the Brokerage.

SIGNATURES

AGENT:

Signature: _____

Printed Name: _____

License #: _____

Date: _____

BROKERAGE:

Hartfelt Real Estate LLC

By: _____

Name: Antione Hart

Title: Broker of Record

Date: _____

BROKERAGE-SPECIFIC COMPLIANCE ADDENDUM

Hartfelt Real Estate LLC

This Brokerage-Specific Compliance Addendum ("Addendum") supplements the Operating Agreement of **Hartfelt Real Estate LLC** (the "Brokerage") and establishes policies governing escrow handling, broker supervision, agent conduct, technology usage, and optional brokerage programs, including the SmartBuy Program.

This Addendum is effective **December 12, 2025**.

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1. ESCROW / TRUST ACCOUNT COMPLIANCE

1.1 Escrow Accounts

- All escrow funds shall be deposited into a **separate brokerage trust account** maintained in accordance with **Florida Statutes Chapter 475** and **FREC rules**.
- Escrow funds shall **never be commingled** with operating funds.

1.2 Authorized Signatories

Only the following may handle escrow funds:

- Broker of Record
- Authorized brokerage staff designated in writing

1.3 Deposit Timeframes

- Escrow deposits must be delivered to the Brokerage **within 3 business days** of receipt, unless otherwise agreed in writing by the parties.

1.4 Reconciliation & Records

- Monthly three-way reconciliations shall be performed.
- Escrow records shall be retained for the period required by Florida law.

1.5 Escrow Disputes

- Escrow disputes shall be handled strictly pursuant to Florida law.
- Brokerage shall not release disputed funds without written authorization, mediation, arbitration, or court order as required.

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2. BROKER SUPERVISION & CONTROL

2.1 Broker of Record Authority

The **Broker of Record** has full authority and responsibility to supervise:

- Licensees
- Advertising
- Transaction activity
- Escrow handling

- Technology use

2.2 Transaction Oversight

All transactions must include:

- Complete documentation
- Required disclosures
- Broker review prior to closing
- Post-closing file audit

2.3 Unlicensed Assistants

Unlicensed personnel may perform only **ministerial tasks** and may not:

- Negotiate
- Provide brokerage advice
- Hold themselves out as licensees

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3. AGENT STATUS & INDEPENDENT CONTRACTORS

- All sales associates and brokers affiliated with the Brokerage operate as **independent contractors**, unless otherwise agreed in writing.
- Agents are responsible for their own taxes, insurance, and expenses.
- Compensation is commission-based only.

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4. ADVERTISING & BRAND COMPLIANCE

4.1 Brokerage Name Prominence

All advertising must clearly display:

- Brokerage legal or trade name
- Broker of Record identification where required

4.2 Social Media & Teams

- Team names, vanity brands, and social media accounts require **Broker approval**.
- No misleading pricing, performance, or investment claims permitted.

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5. TECHNOLOGY, DATA & AI USAGE POLICY

5.1 Approved Technology

Agents may use Brokerage-approved CRM, marketing platforms, and AI-assisted tools **only in compliance with this Addendum**.

5.2 No Automated Advice

Technology tools may assist with:

- Organization
- Data analysis
- Marketing support

They **may not replace professional judgment** or be presented as guarantees.

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6. SMARTBUY PROGRAM – COMPLIANCE SECTION

6.1 SmartBuy Program Defined

The **SmartBuy Program** is an **optional Brokerage program** offering technology-assisted tools, data analysis, and execution support designed to help clients evaluate, structure, and transact real estate opportunities.

SmartBuy is **not**:

- A guarantee of value, pricing, or outcome
- Legal, tax, or financial advice
- An automated decision-making system

6.2 Role of Technology & AI

SmartBuy may incorporate:

- Automated analytics
- Third-party data
- AI-assisted insights

All final decisions remain with the client, subject to Broker supervision.

6.3 Broker Supervision

All SmartBuy-related activity is:

- Subject to Broker of Record oversight
- Governed by Florida real estate law
- Treated as brokerage activity when used in connection with a transaction

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6.4 Client Acknowledgment (Required)

Clients participating in SmartBuy must acknowledge in writing that:

- SmartBuy tools are informational only
- No outcome is guaranteed
- Independent professional advice is recommended
- The Brokerage is not acting as an investment advisor

6.5 Agent Usage Rules

Agents using SmartBuy must:

- Use approved scripts and disclosures
- Avoid representations of certainty, returns, or automation
- Obtain Broker approval for SmartBuy-based marketing or offers

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7. WIRE FRAUD & DATA SECURITY

- Wiring instructions shall **never be sent solely by email**.
- Clients shall receive wire fraud disclosures.
- Verification protocols are mandatory prior to any transfer of funds.

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8. DISCIPLINE & TERMINATION

The Brokerage reserves the right to:

- Suspend or terminate agents for non-compliance
- Restrict access to systems
- Retain transaction files after termination as required by law

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9. AMENDMENTS & GOVERNING LAW

This Addendum may be amended by the Broker of Record at any time and shall be governed by the laws of the **State of Florida**.

ACKNOWLEDGMENT

By affiliation with Hartfelt Real Estate LLC, all licensees and staff acknowledge and agree to comply with this Addendum.

FAIR HOUSING & ANTI-DISCRIMINATION POLICY

Hartfelt Real Estate LLC

Effective Date: December 12, 2025

Hartfelt Real Estate LLC ("Brokerage") is committed to providing equal housing opportunity and conducting all real estate activities in strict compliance with applicable federal, state, and local fair housing laws.

1. POLICY STATEMENT

The Brokerage **does not discriminate** and will not tolerate discrimination, harassment, or retaliation in any aspect of its real estate services, employment practices, or affiliated agent activities.

This policy applies to:

- All brokers, sales associates, employees, independent contractors, assistants, and representatives of the Brokerage
- All clients, customers, vendors, and third parties interacting with the Brokerage

2. PROTECTED CLASSES

In accordance with the **Federal Fair Housing Act**, **Florida Fair Housing Act**, and applicable local laws, discrimination is strictly prohibited based on:

- Race
- Color
- Religion
- Sex
- Sexual orientation
- Gender identity or expression
- National origin
- Disability
- Familial status

- Marital status
- Age (where applicable by law)
- Any other characteristic protected by federal, state, or local law

3. COVERED ACTIVITIES

The Brokerage prohibits discrimination in all real estate–related activities, including but not limited to:

- Listing, marketing, showing, selling, leasing, or financing property
- Setting or negotiating terms, conditions, or privileges of sale or rental
- Advertising or marketing language (print, digital, social media, AI-generated content)
- Steering, redlining, or selective enforcement of policies
- Providing or withholding information about properties, neighborhoods, schools, or demographics
- Participation in brokerage programs, including **SmartBuy**

4. ADVERTISING & MARKETING COMPLIANCE

- All advertising must be **inclusive, neutral, and non-discriminatory**.
- Descriptions may focus only on **property features**, not the characteristics of occupants or neighborhoods.
- Language that expresses preference, limitation, or exclusion based on protected classes is strictly prohibited.
- All AI-assisted or automated marketing tools must be reviewed for fair housing compliance before use.

5. REASONABLE ACCOMMODATIONS & DISABILITIES

The Brokerage will make **reasonable accommodations and modifications** for individuals with disabilities, as required by law, unless doing so would constitute an undue burden or fundamentally alter the nature of the service.

Requests for accommodations must be handled promptly, respectfully, and in compliance with applicable law.

6. AGENT RESPONSIBILITIES

All affiliated agents must:

- Complete required fair housing education and training
- Follow Brokerage-approved scripts and disclosures
- Immediately report any suspected or actual violations
- Avoid providing opinions or guidance that could be construed as discriminatory

Failure to comply may result in disciplinary action, including suspension or termination.

7. COMPLAINTS & REPORTING

Any person who believes they have experienced discrimination by the Brokerage or its agents may submit a complaint:

- In writing to the Broker of Record
- Through internal compliance channels

The Brokerage will:

- Investigate complaints promptly and fairly
- Take appropriate corrective action
- Prohibit retaliation against any individual who raises a concern in good faith

8. NON-RETALIATION POLICY

Retaliation against any person for asserting fair housing rights, filing a complaint, or participating in an investigation is strictly prohibited and will result in disciplinary action.

9. TRAINING & RECORDKEEPING

- The Brokerage maintains records of fair housing training, acknowledgments, and complaints as required by law.
- Agents and staff may be required to complete periodic refresher training.

10. ENFORCEMENT

Violations of this policy may result in:

- Mandatory retraining

- Suspension of privileges
- Termination of affiliation
- Reporting to regulatory authorities when required

11. ACKNOWLEDGMENT

All agents, employees, and representatives of Hartfelt Real Estate LLC are required to acknowledge receipt of and compliance with this Fair Housing & Anti-Discrimination Policy.

Broker of Record

Hartfelt Real Estate LLC

Signature: _____

Name: Antione Hart

Date: December 12, 2025

RESPA & ANTI-KICKBACK COMPLIANCE POLICY

Hartfelt Real Estate LLC

Effective Date: December 12, 2025

Hartfelt Real Estate LLC ("Brokerage") is committed to full compliance with the **Real Estate Settlement Procedures Act (RESPA)**, including **Section 8 (12 U.S.C. § 2607)**, and all applicable federal and state laws prohibiting kickbacks, referral fees, and unearned compensation in real estate transactions.

1. POLICY STATEMENT

The Brokerage **strictly prohibits** any arrangement, agreement, or practice that involves:

- Kickbacks
- Referral fees
- Fee-splitting
- Things of value
- Unearned compensation

in connection with a real estate settlement service, unless expressly permitted by law.

This policy applies to **all brokers, sales associates, employees, independent contractors, assistants, teams, and affiliates** of the Brokerage.

2. PROHIBITED CONDUCT

No person affiliated with the Brokerage may, directly or indirectly:

- Give or receive **anything of value** for the referral of settlement service business
- Accept compensation for services **not actually performed**
- Split fees with unlicensed individuals
- Condition referrals on receiving marketing, leads, gifts, or services
- Participate in sham or disguised referral arrangements

- Circumvent RESPA through side agreements, inflated invoices, or third-party pass-throughs

"Thing of value" includes, but is not limited to:

- Cash, credits, discounts, or rebates
- Gifts, meals, entertainment, travel
- Marketing services or advertising
- Lead generation or data access
- Reduced fees or preferential treatment

3. PERMITTED CONDUCT (WITH CONDITIONS)

The following may be permitted **only if compliant with RESPA and Brokerage approval**:

3.1 Normal Brokerage Compensation

- Commissions earned for **actual brokerage services rendered**
- Referral fees **between licensed real estate brokers**, where permitted by law

3.2 Affiliated Business Arrangements (ABAs)

ABAs are permitted **only if**:

- A written **Affiliated Business Disclosure** is provided
- The client is **not required** to use the affiliated service
- Compensation reflects **fair market value** for services actually performed
- No required use or coercion exists

3.3 Marketing & Advertising

- Agents may pay for **their own advertising**
- Co-marketing with settlement service providers is permitted **only if costs are split proportionally** and reflect fair market value
- No marketing arrangement may be tied to referrals

4. SMARTBUY PROGRAM & TECHNOLOGY COMPLIANCE

- SmartBuy and other Brokerage programs **may not be used** to:
    - Funnel settlement service referrals

    - Offer discounted services in exchange for business
    - Mask referral compensation through technology or data access
- Any SmartBuy-related vendor relationships must:
    - Be reviewed and approved by the Broker of Record
    - Comply with RESPA Section 8
    - Include required disclosures where applicable

5. DISCLOSURES & DOCUMENTATION

- All required disclosures must be made **timely and in writing**
- Records of referrals, disclosures, and compensation arrangements must be retained as required by law
- No off-the-books or informal arrangements are permitted

6. AGENT RESPONSIBILITIES

All affiliated agents must:

- Understand and comply with this policy
- Seek Broker approval **before** entering any referral or marketing arrangement
- Immediately report any suspected violation
- Use only Brokerage-approved referral agreements and disclosures

Failure to comply may result in disciplinary action.

7. REPORTING & NON-RETALIATION

- Suspected RESPA violations must be reported to the Broker of Record
- The Brokerage prohibits retaliation against any individual who raises concerns in good faith

8. ENFORCEMENT & DISCIPLINE

Violations of this policy may result in:

- Mandatory compliance training
- Suspension or termination of affiliation
- Reporting to regulatory authorities
- Civil or criminal penalties as provided by law

9. GOVERNING LAW

This policy is governed by **federal law** and applicable **Florida statutes and regulations**.

10. ACKNOWLEDGMENT

All agents, employees, and representatives of Hartfelt Real Estate LLC must acknowledge receipt of and compliance with this RESPA & Anti-Kickback Compliance Policy.

Broker of Record:

Hartfelt Real Estate LLC

Signature: _____

Name: Antione Hart

Date: December 12, 2025

PRIVACY POLICY & DATA SECURITY POLICY

Hartfelt Real Estate LLC

Effective Date: December 12, 2025

Hartfelt Real Estate LLC ("Brokerage," "we," "us," or "our") is committed to protecting the privacy, confidentiality, and security of personal and financial information entrusted to us by clients, customers, agents, and business partners.

This Policy applies to all brokers, sales associates, employees, independent contractors, assistants, and representatives affiliated with the Brokerage.

1. INFORMATION WE COLLECT

The Brokerage may collect, use, store, and process the following categories of information:

1.1 Personal Information

- Name, address, phone number, email address
- Date of birth
- Government-issued identification (when required)

1.2 Financial Information

- Bank account and wire instructions
- Loan and financing information
- Transaction records and settlement statements

1.3 Transaction & Property Information

- Purchase agreements, listings, disclosures
- Inspection reports, surveys, title documents

1.4 Technology & Usage Data

- CRM records
- Website and platform usage data
- AI-assisted analytics and tool outputs (where applicable)

2. USE OF INFORMATION

Information is collected and used solely for legitimate business purposes, including:

- Providing real estate brokerage services
- Facilitating transactions and closings
- Complying with legal and regulatory obligations
- Internal recordkeeping and risk management
- Improving brokerage systems, technology, and services

The Brokerage does **not sell** personal information.

3. INFORMATION SHARING & DISCLOSURE

Information may be shared **only as permitted by law** and only with:

- Clients and authorized representatives
- Lenders, title companies, attorneys, inspectors, and service providers involved in a transaction
- MLSs and regulatory bodies where required
- Technology vendors providing CRM, transaction management, or AI tools under confidentiality obligations

Information is **never shared** for improper marketing, referral compensation, or kickbacks.

4. DATA SECURITY MEASURES

The Brokerage maintains reasonable administrative, technical, and physical safeguards to protect data, including:

- Secure CRM and transaction platforms
- Password protection and access controls
- Limited access based on role and necessity
- Secure storage of physical and electronic records
- Regular review of vendor security practices

Only authorized personnel may access confidential data.

5. WIRE FRAUD & FINANCIAL SECURITY

- Wiring instructions are **never sent solely by email**.
- Clients are instructed to independently verify wiring information by phone using known contact information.
- Agents may not modify or relay wiring instructions outside approved procedures.

6. AI, TECHNOLOGY & AUTOMATED TOOLS

The Brokerage may use AI-assisted or automated tools for:

- Data analysis
- Marketing support
- Workflow efficiency

Safeguards include:

- Human oversight at all times
- No automated decision-making without broker supervision
- No guarantees, predictions, or outcomes represented as certain

Clients remain responsible for final decisions.

7. AGENT & STAFF RESPONSIBILITIES

All affiliated agents and staff must:

- Protect confidential information at all times
- Use only Brokerage-approved systems and devices
- Avoid transmitting sensitive data over unsecured networks
- Immediately report suspected data breaches or security incidents

Failure to comply may result in disciplinary action.

8. DATA RETENTION

- Records are retained in accordance with Florida law, MLS rules, and regulatory requirements.
- Data is securely disposed of when no longer required.

9. DATA BREACH RESPONSE

In the event of a suspected or confirmed data breach:

- Immediate steps will be taken to contain and assess the incident
- Affected parties and authorities will be notified as required by law
- Corrective actions will be implemented promptly

10. CLIENT RIGHTS

Clients may request:

- Access to their personal information
- Correction of inaccurate information
- Clarification on data usage

Requests must be submitted in writing to the Brokerage.

11. NON-RETALIATION

No agent, client, or employee will be retaliated against for reporting privacy or data security concerns in good faith.

12. GOVERNING LAW

This Policy is governed by the laws of the **State of Florida**, along with applicable federal privacy and data security regulations.

13. ACKNOWLEDGMENT

All agents, employees, and representatives of Hartfelt Real Estate LLC must acknowledge receipt of and compliance with this Privacy Policy & Data Security Policy.

Broker of Record:

Hartfelt Real Estate LLC

Signature: _____

Name: Antione Hart

Date: December 12, 2025

RECORD RETENTION POLICY

Hartfelt Real Estate LLC

Effective Date: December 12, 2025

Hartfelt Real Estate LLC ("Brokerage") maintains this Record Retention Policy to ensure compliance with applicable federal, state, and local laws, regulatory requirements, and best practices governing the creation, storage, retention, and destruction of business and transaction records.

This Policy applies to all brokers, sales associates, employees, independent contractors, assistants, and representatives affiliated with the Brokerage.

1. GENERAL POLICY

- The Brokerage shall retain records in a secure, organized, and accessible manner.
- Records may be maintained in **electronic and/or physical format**, provided they are readable, reproducible, and protected from unauthorized access.
- Destruction of records shall occur **only after the applicable retention period has expired** and in a secure manner.

2. RECORD CATEGORIES & RETENTION PERIODS

Unless a longer period is required by law, the Brokerage will retain records as follows:

2.1 Transaction Records (Minimum 5 Years)

- Listing agreements
- Buyer representation agreements
- Contracts of sale or lease
- Disclosures and addenda
- Closing statements (HUD-1 / ALTA)
- Correspondence related to transactions

Retention: Minimum **5 years** from closing, termination, or expiration

2.2 Escrow & Trust Account Records (Minimum 5 Years)

- Deposit receipts
- Disbursement records
- Monthly reconciliations
- Escrow ledgers
- Dispute documentation

Retention: Minimum **5 years**

2.3 Agent & Brokerage Records (Minimum 5 Years)

- Independent Contractor Agreements
- Commission agreements
- License copies
- Training acknowledgments
- Policy acknowledgments

Retention: Minimum **5 years** after termination of affiliation

2.4 Financial & Tax Records (Minimum 7 Years)

- Tax returns
- Accounting records
- Payroll or contractor payment records
- Bank statements

Retention: Minimum **7 years**

2.5 Compliance & Legal Records

- Fair Housing policies and training records
- RESPA disclosures
- Privacy acknowledgments
- Complaints and investigation files

Retention: Minimum **5–7 years**, depending on the nature of the record

2.6 Marketing & Advertising Records (Minimum 3 Years)

- Advertisements (print, digital, social media)
- Email campaigns
- Website content archives

Retention: Minimum **3 years**

3. LITIGATION HOLD

- If the Brokerage becomes aware of litigation, investigation, audit, or regulatory inquiry, **all related records must be preserved immediately**.
- Normal destruction schedules shall be suspended until the hold is lifted in writing.

4. STORAGE & SECURITY

- Electronic records must be stored in **secure, access-controlled systems**.
- Physical records must be stored in **locked, controlled-access locations**.
- Only authorized personnel may access retained records.

5. DESTRUCTION OF RECORDS

- Records eligible for destruction shall be disposed of securely:
  - Paper records by shredding
  - Electronic records by permanent deletion
- Destruction must be conducted in a manner that prevents reconstruction or unauthorized access.

6. AGENT & STAFF RESPONSIBILITIES

All affiliated agents and staff must:

- Timely submit transaction files to the Brokerage
- Comply with retention and security requirements
- Refrain from deleting or altering records outside approved procedures
- Cooperate with audits or investigations

7. POLICY ADMINISTRATION

- The Broker of Record is responsible for administering this Policy.

- The Brokerage reserves the right to amend this Policy to reflect changes in law or business practices.

8. GOVERNING LAW

This Policy shall be governed by and interpreted in accordance with the laws of the **State of Florida** and applicable federal law.

9. ACKNOWLEDGMENT

All agents, employees, and representatives of Hartfelt Real Estate LLC must acknowledge receipt of and compliance with this Record Retention Policy.

Broker of Record:

Hartfelt Real Estate LLC

Signature: _____

Name: Antione Hart

Date: December 12, 2025

MLS USAGE & COMPLIANCE POLICY

Hartfelt Real Estate LLC

This policy forms part of the Hartfelt Real Estate Brokerage Policies & Procedures and applies to all affiliated licensees.

Effective Date: January 1, 2026

This MLS Usage & Compliance Policy ("Policy") governs how agents affiliated with **Hartfelt Real Estate LLC** ("Brokerage") access, use, and comply with Multiple Listing Service ("MLS") rules and requirements.

Compliance with this Policy is a condition of affiliation.

1. GENERAL PRINCIPLES

Agents must:

- Comply with **all MLS rules**, bylaws, and data use policies applicable to their MLS
- Follow **Florida law**, DBPR/FREC regulations, and Brokerage policies
- Use MLS data **only for authorized real estate purposes**
- Maintain accuracy, timeliness, and professionalism in all MLS activity

2. ACCESS & CREDENTIALS

- MLS access is granted **individually** to licensed agents in good standing.
- **Sharing login credentials** is strictly prohibited.
- Agents are responsible for all activity conducted under their MLS credentials.
- Access may be suspended for violations, license issues, or nonpayment of dues.

3. LISTING INPUT & ACCURACY

Agents are responsible for ensuring that all MLS entries are:

- **Truthful, accurate, and complete**
- Supported by written seller authorization

- Updated promptly upon any material change

Required accuracy includes:

- Property type, status, and pricing
- Square footage (with proper disclosures if estimated)
- Bedroom/bathroom counts
- Lot size and zoning (when advertised)
- HOA information (if applicable)

Knowingly entering false or misleading data is grounds for discipline.

4. TIMELINESS OF LISTINGS

- Listings must be entered into the MLS **within the timeframe required by the MLS** after execution of a listing agreement or change in status.
- "Coming Soon," status changes, and withdrawals must follow **MLS-specific rules**.
- Pocket listings or delayed entry may only be used where permitted and with proper disclosures.

5. STATUS CHANGES & UPDATES

Agents must promptly update the MLS to reflect:

- Under Contract / Pending status
- Price changes
- Withdrawals or cancellations
- Closed / Sold status

Failure to update status in a timely manner may result in fines or sanctions.

6. PHOTOS, MEDIA & INTELLECTUAL PROPERTY

- Agents must have rights to use all photos, videos, floor plans, and media uploaded to the MLS.
- MLS content may **not** be copied, scraped, or redistributed outside permitted uses.

- AI-enhanced images or virtual staging must comply with MLS disclosure rules and may not be misleading.

7. REMARKS & ADVERTISING LANGUAGE

- MLS remarks must be factual and non-discriminatory.
- No guarantees, inducements, or misleading claims.
- No references to protected classes or neighborhood demographics.
- No promotion of services unrelated to the listed property unless permitted.

8. SHOWINGS & COOPERATION

- Agents must cooperate with other MLS participants as required.
- Showing instructions must be accurate and followed.
- Access restrictions must be clearly disclosed.

9. COMMISSION & COMPENSATION DISCLOSURES

- Offered compensation must be stated clearly and in accordance with MLS rules.
- Any changes to compensation must be properly documented and updated.
- Side agreements affecting compensation must comply with Brokerage policy and law.

10. DATA SECURITY & CONFIDENTIALITY

- MLS data is confidential and proprietary.
- Agents may not:
    - Share MLS data with unlicensed individuals
    - Use MLS data for non-brokerage purposes
    - Sell or distribute MLS data

All MLS data must be protected in accordance with the Brokerage's **Privacy & Data Security Policy**.

11. SMARTBUY & MLS USE

- SmartBuy tools may be used to analyze MLS data **only as permitted by MLS rules**.
- MLS data may not be exported, repurposed, or automated in violation of MLS agreements.
- Any technology using MLS data must be approved by the Brokerage.

12. VIOLATIONS & DISCIPLINE

MLS violations may result in:

- MLS fines or sanctions
- Mandatory retraining
- Suspension of MLS access
- Brokerage discipline, including termination
- Reporting to regulatory authorities when required

Agents are responsible for **all fines or penalties** imposed due to their actions.

13. AUDITS & COOPERATION

- The Brokerage may audit MLS usage at any time.
- Agents must cooperate with MLS or Brokerage investigations or inquiries.

ADVERTISING RULES & MARKETING POLICY

This policy forms part of the Hartfelt Real Estate Brokerage Policies & Procedures and applies to all affiliated licensees.

HartFelt Real Estate LLC

Effective Date: January 1, 2026

This Advertising Rules & Marketing Policy ("Policy") governs all advertising, marketing, branding, and promotional activity conducted by sales associates, broker associates, teams, and other affiliated licensees of **HartFelt Real Estate LLC** ("Brokerage").

Compliance with this Policy is mandatory and is a condition of affiliation with Brokerage.

1. PURPOSE

The purpose of this Policy is to ensure that all advertising and marketing conducted by affiliated licensees is lawful, accurate, professional, brand-consistent, and compliant with applicable Florida law, Florida Real Estate Commission ("FREC") rules, MLS requirements, fair housing laws, and Brokerage standards. Florida requires real estate advertising to make clear that the public is dealing with a real estate licensee, to include the licensed brokerage name, and not to be false, fraudulent, deceptive, or misleading.

2. SCOPE

This Policy applies to all forms of advertising and promotion, including but not limited to:

- print advertising;
- flyers, brochures, postcards, mailers, and signage;
- websites, landing pages, and domain names;
- social media posts, reels, stories, videos, livestreams, and profiles;
- email marketing, newsletters, text messages, and direct messages;
- online lead generation platforms and digital ads;
- AI-assisted or AI-generated marketing content;

- listing promotion and personal branding connected to licensed real estate activity.

3. GENERAL ADVERTISING STANDARDS

All advertising and marketing must be:

- truthful, accurate, and professional;
- clear and not misleading;
- compliant with Florida law, FREC rules, MLS rules, and fair housing requirements;
- consistent with Brokerage brand standards and policies.

No licensee may publish, distribute, or cause to be published any advertisement that is false, deceptive, misleading, incomplete in a material way, or likely to create a false impression.

4. REQUIRED BROKERAGE IDENTIFICATION

4.1 Brokerage Name

All real estate advertising must clearly include the licensed name of the brokerage firm, **HartFelt Real Estate LLC**, or another approved licensed name or trade name used by Brokerage, in a manner that is readily noticeable and readable. Florida's advertising rule requires inclusion of the licensed brokerage name.

4.2 Licensee Identification

Advertising must make clear that the individual featured is a real estate licensee affiliated with HartFelt Real Estate LLC. If a licensee's personal name appears in advertising, the name used must comply with Florida requirements, including use of the licensee's registered last name at minimum.

4.3 Readability and Prominence

Brokerage identification must not be hidden, obscured, or displayed in a manner that is difficult for a reasonable consumer to notice or read.

5. PROHIBITED ADVERTISING PRACTICES

Licensees may not:

- make false, deceptive, misleading, or unsubstantiated statements;
- guarantee sales prices, appreciation, profits, returns, closing outcomes, or investment performance;
- use phrases such as "guaranteed profit," "risk-free," "can't lose," or similar claims suggesting certainty;
- advertise a property without proper authorization;
- advertise another broker's listing without required permission;
- misrepresent zoning, property condition, use, lot size, income potential, or development potential;
- misuse "coming soon" status or advertise listings in violation of MLS rules;
- manipulate photos, videos, renderings, or AI content in a misleading manner;
- publish misleading statistics, testimonials, rankings, or production claims;
- engage in discriminatory advertising or steering.

6. FAIR HOUSING COMPLIANCE

All advertising must comply with applicable fair housing laws.

Advertising may describe the **property** and its features, but may not describe preferred or intended occupants, protected classes, or neighborhood characterizations in a discriminatory or exclusionary way.

Licensees are responsible for reviewing all marketing, including AI-assisted content, for bias, exclusionary language, or other fair housing concerns before publication.

7. TEAM NAMES, GROUP NAMES, AND VANITY BRANDS

All team names, group names, logos, websites, social handles, vanity brands, and branded marketing concepts require prior written approval from Brokerage.

No team or group name may:

- suggest that the team or group is a separate brokerage or independent real estate company; or
- include words or terms prohibited under Florida rules for team/group names, including terms such as **real estate, realty, brokerage, brokers, company, corporation, corp., LLC, Inc., properties, property, or associates**, or similar wording that suggests a separate real estate business. Florida's team/group rule restricts these kinds of names and also requires the team/group name not be larger than the brokerage name in advertising.

Any approved team or group advertising must:

- clearly identify HartFelt Real Estate LLC; and
- display the team or group name no larger than the name of the registered brokerage.

8. SOCIAL MEDIA & DIGITAL MARKETING

All social media and digital marketing related to licensed real estate activity must comply with this Policy.

Licensees must:

- accurately identify their Brokerage affiliation where required;
- ensure posts, profiles, stories, reels, videos, captions, and bios comply with applicable law and Brokerage standards;
- avoid misleading claims, unverified market statements, unauthorized listing promotion, or inaccurate production claims;
- promptly revise or remove content upon Brokerage request.

Direct messages, text messages, and email marketing related to real estate services are considered advertising and must comply with this Policy.

9. SMARTBUY, INCENTIVE PROGRAMS, AND TECHNOLOGY-ASSISTED MARKETING

When promoting SmartBuy or similar programs, licensees must use Brokerage-approved language and any required disclosures.

Licensees may not present SmartBuy or similar offerings as:

- legal advice;
- tax advice;
- financial or investment advice;
- a guaranteed savings or result;
- a required program for a buyer or seller.

All program descriptions must be accurate, balanced, and approved where required by Brokerage.

10. AI-GENERATED OR AI-ASSISTED CONTENT

AI tools may be used only as drafting or creative-assistance tools and not as a substitute for human review.

Before publication, the licensee is responsible for verifying:

- factual accuracy;
- legal compliance;
- fair housing compliance;
- image authenticity and non-misleading presentation;
- consistency with Brokerage standards.

The licensee remains fully responsible for all AI-assisted content published under the licensee's name or Brokerage affiliation.

11. WEBSITES, DOMAINS, AND ONLINE PRESENCE

Any agent or team website, landing page, or domain connected to licensed real estate activity must be approved by Brokerage before use.

Such websites or domains must:

- clearly identify HartFelt Real Estate LLC;
- not imply that the licensee or team is an independent brokerage;
- comply with this Policy and all applicable law and MLS rules.

Domains, handles, or branding that suggest an independent brokerage, company, or real estate firm are prohibited unless expressly approved and legally compliant.

12. SIGNS, LISTING MARKETING, AND PROPERTY PROMOTION

All signs and property marketing must comply with:

- seller authorization;
- MLS rules;
- local ordinances and association rules, where applicable;
- Brokerage standards.

Licensees must promptly remove or update signs and marketing materials when a listing status changes, expires, closes, or is otherwise no longer authorized for advertising.

13. APPROVAL, REVIEW, AND AUDIT RIGHTS

Brokerage may require prior approval of advertising and marketing materials at its discretion.

Brokerage reserves the right to:

- review and audit advertising at any time;
- require correction, revision, or removal of any marketing piece;
- restrict use of certain branding, platforms, vendors, or tools;
- require retraining for compliance deficiencies.

Licensees must promptly comply with any Brokerage directive relating to advertising corrections or removals.

14. RECORDKEEPING

Licensees may be required to provide copies, screenshots, links, login access, or other records of advertising or marketing materials upon Brokerage request for compliance review, audit, or recordkeeping purposes.

15. DISCIPLINE FOR VIOLATIONS

Violations of this Policy may result in any action Brokerage deems appropriate, including:

- verbal or written warning;
- mandatory retraining;
- suspension of advertising or marketing privileges;
- required correction or removal of non-compliant materials;
- reimbursement of direct correction costs where authorized by written agreement;
- internal compliance review;
- termination of affiliation;
- reporting to MLS, REALTOR® association, or regulatory authorities where required.

False, deceptive, or misleading advertising can also expose a licensee to Florida discipline.

16. NO WAIVER

Brokerage’s review, approval, or failure to object to any advertising does not waive the licensee’s independent responsibility to comply with this Policy and applicable law.

SOCIAL MEDIA GUIDELINES & DIGITAL CONDUCT POLICY

Hartfelt Real Estate LLC

This policy forms part of the Hartfelt Real Estate Brokerage Policies & Procedures and applies to all affiliated licensees.

Effective Date: January 1, 2026

These Social Media Guidelines ("Policy") govern all social media, digital content, and online communications created or shared by agents affiliated with **Hartfelt Real Estate LLC** ("Brokerage").

Compliance with this Policy is a condition of affiliation.

1. SCOPE

This Policy applies to all online activity related to real estate or the Brokerage, including but not limited to:

- Instagram, Facebook, LinkedIn, TikTok, X (Twitter), YouTube
- Personal and professional accounts
- Stories, reels, posts, comments, DMs, lives, and ads
- AI-generated, scheduled, or automated content

If you're talking about real estate, **this policy applies**.

2. REQUIRED BROKERAGE DISCLOSURE

- All real estate–related profiles and posts must clearly disclose:
  - **Hartfelt Real Estate LLC**
  - Agent's license status (Sales Associate / Broker Associate, where required)
- Brokerage name must be **readily noticeable** and not hidden in bios or links.

3. CONTENT STANDARDS (WHAT'S ALLOWED)

Agents may post:

- Property marketing with written authorization
- Educational real estate content
- Market commentary framed as opinion, not guarantees
- Personal branding content consistent with professionalism
- SmartBuy content using **approved language and disclosures**

All content must be:

- Truthful and non-misleading
- Fair Housing compliant
- Respectful and professional

4. PROHIBITED CONTENT

Agents may **not** post or imply:

- Guaranteed prices, appreciation, or returns
- “Can’t lose,” “risk-free,” or similar language
- Discriminatory or exclusionary statements
- Misleading before/after claims without context
- Client confidential information without written consent
- Screenshots of contracts, wire info, or private communications
- Legal, tax, or investment advice

5. FAIR HOUSING & COMMUNITY REFERENCES

- Do **not** describe neighborhoods by demographics, schools, income, or lifestyle characterizations.
- Focus on **property features**, not who should or should not live there.
- Emojis, slang, hashtags, and AI captions must also comply.

6. SMARTBUY & AI CONTENT RULES

6.1 SmartBuy

When referencing SmartBuy:

- Clearly state it is an **optional program**
- Avoid presenting it as automated advice or guarantees
- Use Brokerage-approved scripts and disclosures

6.2 AI-Generated Content

- AI-assisted content is permitted **with human review**
- Agents are responsible for accuracy and compliance
- AI outputs may not be posted blindly or without verification

7. CLIENT INTERACTIONS & MESSAGES

- DMs, comments, and texts are considered **advertising and business records**
- Do not negotiate material terms solely via social media
- Be professional and assume communications may be reviewed or discoverable

8. USE OF MLS DATA & MEDIA

- Do not repost MLS photos, data, or remarks unless authorized
- Respect copyright and intellectual property rights
- Virtual staging or AI-enhanced images must be disclosed if required

9. POLITICAL, CONTROVERSIAL & PERSONAL CONTENT

- Agents may express personal views, but must:
  - Avoid harassment or discriminatory language
  - Avoid implying Brokerage endorsement
  - Keep business and personal accounts clearly distinguishable when possible

10. ADVERTISING APPROVAL & MONITORING

- The Brokerage may require prior approval of social media content
- Non-compliant content must be removed immediately upon request
- Repeated violations may result in loss of posting privileges

11. VIOLATIONS & DISCIPLINE

Violations of this Policy may result in:

- Mandatory retraining
- Content removal
- Suspension of marketing privileges
- Termination of affiliation
- Reporting to MLS or regulators if required

Form **W-9**
(Rev. March 2024)
Department of the Treasury
Internal Revenue Service

Request for Taxpayer Identification Number and Certification

Go to *www.irs.gov/FormW9* for instructions and the latest information.

Give form to the requester. Do not send to the IRS.

Before you begin. For guidance related to the purpose of Form W-9, see *Purpose of Form*, below.

Print or type. See ***Specific Instructions*** on page 3.

1 Name of entity/individual. An entry is required. (For a sole proprietor or disregarded entity, enter the owner's name on line 1, and enter the business/disregarded entity's name on line 2.)

2 Business name/disregarded entity name, if different from above.

3a Check the appropriate box for federal tax classification of the entity/individual whose name is entered on line 1. Check only **one** of the following seven boxes.

☐ Individual/sole proprietor ☐ C corporation ☐ S corporation ☐ Partnership ☐ Trust/estate

☐ LLC. Enter the tax classification (C = C corporation, S = S corporation, P = Partnership) . . . . _____

Note: Check the "LLC" box above and, in the entry space, enter the appropriate code (C, S, or P) for the tax classification of the LLC, unless it is a disregarded entity. A disregarded entity should instead check the appropriate box for the tax classification of its owner.

☐ Other (see instructions) _____

3b If on line 3a you checked "Partnership" or "Trust/estate," or checked "LLC" and entered "P" as its tax classification, and you are providing this form to a partnership, trust, or estate in which you have an ownership interest, check this box if you have any foreign partners, owners, or beneficiaries. See instructions . . . . . ☐

4 Exemptions (codes apply only to certain entities, not individuals; see instructions on page 3):

Exempt payee code (if any) _____

Exemption from Foreign Account Tax Compliance Act (FATCA) reporting code (if any) _____

(Applies to accounts maintained outside the United States.)

5 Address (number, street, and apt. or suite no.). See instructions.

Requester's name and address (optional)

6 City, state, and ZIP code

7 List account number(s) here (optional)

Part I Taxpayer Identification Number (TIN)

Enter your TIN in the appropriate box. The TIN provided must match the name given on line 1 to avoid backup withholding. For individuals, this is generally your social security number (SSN). However, for a resident alien, sole proprietor, or disregarded entity, see the instructions for Part I, later. For other entities, it is your employer identification number (EIN). If you do not have a number, see *How to get a TIN*, later.

Note: If the account is in more than one name, see the instructions for line 1. See also *What Name and Number To Give the Requester* for guidelines on whose number to enter.

Social security number

☐☐☐ – ☐☐ – ☐☐☐☐

or

Employer identification number

☐☐ – ☐☐☐☐☐☐☐

Part II Certification

Under penalties of perjury, I certify that:

1. The number shown on this form is my correct taxpayer identification number (or I am waiting for a number to be issued to me); and
2. I am not subject to backup withholding because (a) I am exempt from backup withholding, or (b) I have not been notified by the Internal Revenue Service (IRS) that I am subject to backup withholding as a result of a failure to report all interest or dividends, or (c) the IRS has notified me that I am no longer subject to backup withholding; and
3. I am a U.S. citizen or other U.S. person (defined below); and
4. The FATCA code(s) entered on this form (if any) indicating that I am exempt from FATCA reporting is correct.

Certification instructions. You must cross out item 2 above if you have been notified by the IRS that you are currently subject to backup withholding because you have failed to report all interest and dividends on your tax return. For real estate transactions, item 2 does not apply. For mortgage interest paid, acquisition or abandonment of secured property, cancellation of debt, contributions to an individual retirement arrangement (IRA), and, generally, payments other than interest and dividends, you are not required to sign the certification, but you must provide your correct TIN. See the instructions for Part II, later.

Sign Here **Signature of U.S. person** **Date**

General Instructions

Section references are to the Internal Revenue Code unless otherwise noted.

Future developments. For the latest information about developments related to Form W-9 and its instructions, such as legislation enacted after they were published, go to *www.irs.gov/FormW9*.

What's New

Line 3a has been modified to clarify how a disregarded entity completes this line. An LLC that is a disregarded entity should check the appropriate box for the tax classification of its owner. Otherwise, it should check the "LLC" box and enter its appropriate tax classification.

New line 3b has been added to this form. A flow-through entity is required to complete this line to indicate that it has direct or indirect foreign partners, owners, or beneficiaries when it provides the Form W-9 to another flow-through entity in which it has an ownership interest. This change is intended to provide a flow-through entity with information regarding the status of its indirect foreign partners, owners, or beneficiaries, so that it can satisfy any applicable reporting requirements. For example, a partnership that has any indirect foreign partners may be required to complete Schedules K-2 and K-3. See the Partnership Instructions for Schedules K-2 and K-3 (Form 1065).

Purpose of Form

An individual or entity (Form W-9 requester) who is required to file an information return with the IRS is giving you this form because they

must obtain your correct taxpayer identification number (TIN), which may be your social security number (SSN), individual taxpayer identification number (ITIN), adoption taxpayer identification number (ATIN), or employer identification number (EIN), to report on an information return the amount paid to you, or other amount reportable on an information return. Examples of information returns include, but are not limited to, the following.

• Form 1099-INT (interest earned or paid).

• Form 1099-DIV (dividends, including those from stocks or mutual funds).

• Form 1099-MISC (various types of income, prizes, awards, or gross proceeds).

• Form 1099-NEC (nonemployee compensation).

• Form 1099-B (stock or mutual fund sales and certain other transactions by brokers).

• Form 1099-S (proceeds from real estate transactions).

• Form 1099-K (merchant card and third-party network transactions).

• Form 1098 (home mortgage interest), 1098-E (student loan interest), and 1098-T (tuition).

• Form 1099-C (canceled debt).

• Form 1099-A (acquisition or abandonment of secured property).

Use Form W-9 only if you are a U.S. person (including a resident alien), to provide your correct TIN.

Caution: If you don't return Form W-9 to the requester with a TIN, you might be subject to backup withholding. See *What is backup withholding*, later.

By signing the filled-out form, you:

1. Certify that the TIN you are giving is correct (or you are waiting for a number to be issued);

2. Certify that you are not subject to backup withholding; or

3. Claim exemption from backup withholding if you are a U.S. exempt payee; and

4. Certify to your non-foreign status for purposes of withholding under chapter 3 or 4 of the Code (if applicable); and

5. Certify that FATCA code(s) entered on this form (if any) indicating that you are exempt from the FATCA reporting is correct. See *What Is FATCA Reporting*, later, for further information.

Note: If you are a U.S. person and a requester gives you a form other than Form W-9 to request your TIN, you must use the requester's form if it is substantially similar to this Form W-9.

Definition of a U.S. person. For federal tax purposes, you are considered a U.S. person if you are:

• An individual who is a U.S. citizen or U.S. resident alien;

• A partnership, corporation, company, or association created or organized in the United States or under the laws of the United States;

• An estate (other than a foreign estate); or

• A domestic trust (as defined in Regulations section 301.7701-7).

Establishing U.S. status for purposes of chapter 3 and chapter 4 withholding. Payments made to foreign persons, including certain distributions, allocations of income, or transfers of sales proceeds, may be subject to withholding under chapter 3 or chapter 4 of the Code (sections 1441–1474). Under those rules, if a Form W-9 or other certification of non-foreign status has not been received, a withholding agent, transferee, or partnership (payor) generally applies presumption rules that may require the payor to withhold applicable tax from the recipient, owner, transferor, or partner (payee). See Pub. 515, Withholding of Tax on Nonresident Aliens and Foreign Entities.

The following persons must provide Form W-9 to the payor for purposes of establishing its non-foreign status.

• In the case of a disregarded entity with a U.S. owner, the U.S. owner of the disregarded entity and not the disregarded entity.

• In the case of a grantor trust with a U.S. grantor or other U.S. owner, generally, the U.S. grantor or other U.S. owner of the grantor trust and not the grantor trust.

• In the case of a U.S. trust (other than a grantor trust), the U.S. trust and not the beneficiaries of the trust.

See Pub. 515 for more information on providing a Form W-9 or a certification of non-foreign status to avoid withholding.

Foreign person. If you are a foreign person or the U.S. branch of a foreign bank that has elected to be treated as a U.S. person (under Regulations section 1.1441-1(b)(2)(iv) or other applicable section for chapter 3 or 4 purposes), do not use Form W-9. Instead, use the appropriate Form W-8 or Form 8233 (see Pub. 515). If you are a qualified foreign pension fund under Regulations section 1.897(l)-1(d), or a partnership that is wholly owned by qualified foreign pension funds, that is treated as a non-foreign person for purposes of section 1445 withholding, do not use Form W-9. Instead, use Form W-8EXP (or other certification of non-foreign status).

Nonresident alien who becomes a resident alien. Generally, only a nonresident alien individual may use the terms of a tax treaty to reduce or eliminate U.S. tax on certain types of income. However, most tax treaties contain a provision known as a saving clause. Exceptions specified in the saving clause may permit an exemption from tax to continue for certain types of income even after the payee has otherwise become a U.S. resident alien for tax purposes.

If you are a U.S. resident alien who is relying on an exception contained in the saving clause of a tax treaty to claim an exemption from U.S. tax on certain types of income, you must attach a statement to Form W-9 that specifies the following five items.

1. The treaty country. Generally, this must be the same treaty under which you claimed exemption from tax as a nonresident alien.

2. The treaty article addressing the income.

3. The article number (or location) in the tax treaty that contains the saving clause and its exceptions.

4. The type and amount of income that qualifies for the exemption from tax.

5. Sufficient facts to justify the exemption from tax under the terms of the treaty article.

Example. Article 20 of the U.S.-China income tax treaty allows an exemption from tax for scholarship income received by a Chinese student temporarily present in the United States. Under U.S. law, this student will become a resident alien for tax purposes if their stay in the United States exceeds 5 calendar years. However, paragraph 2 of the first Protocol to the U.S.-China treaty (dated April 30, 1984) allows the provisions of Article 20 to continue to apply even after the Chinese student becomes a resident alien of the United States. A Chinese student who qualifies for this exception (under paragraph 2 of the first Protocol) and is relying on this exception to claim an exemption from tax on their scholarship or fellowship income would attach to Form W-9 a statement that includes the information described above to support that exemption.

If you are a nonresident alien or a foreign entity, give the requester the appropriate completed Form W-8 or Form 8233.

Backup Withholding

What is backup withholding? Persons making certain payments to you must under certain conditions withhold and pay to the IRS 24% of such payments. This is called "backup withholding." Payments that may be subject to backup withholding include, but are not limited to, interest, tax-exempt interest, dividends, broker and barter exchange transactions, rents, royalties, nonemployee pay, payments made in settlement of payment card and third-party network transactions, and certain payments from fishing boat operators. Real estate transactions are not subject to backup withholding.

You will not be subject to backup withholding on payments you receive if you give the requester your correct TIN, make the proper certifications, and report all your taxable interest and dividends on your tax return.

Payments you receive will be subject to backup withholding if:

1. You do not furnish your TIN to the requester;

2. You do not certify your TIN when required (see the instructions for Part II for details);

3. The IRS tells the requester that you furnished an incorrect TIN;

4. The IRS tells you that you are subject to backup withholding because you did not report all your interest and dividends on your tax return (for reportable interest and dividends only); or

5. You do not certify to the requester that you are not subject to backup withholding, as described in item 4 under "*By signing the filled-out form*" above (for reportable interest and dividend accounts opened after 1983 only).

Certain payees and payments are exempt from backup withholding. See *Exempt payee code*, later, and the separate Instructions for the Requester of Form W-9 for more information.

See also *Establishing U.S. status for purposes of chapter 3 and chapter 4 withholding*, earlier.

What Is FATCA Reporting?

The Foreign Account Tax Compliance Act (FATCA) requires a participating foreign financial institution to report all U.S. account holders that are specified U.S. persons. Certain payees are exempt from FATCA reporting. See *Exemption from FATCA reporting code*, later, and the Instructions for the Requester of Form W-9 for more information.

Updating Your Information

You must provide updated information to any person to whom you claimed to be an exempt payee if you are no longer an exempt payee and anticipate receiving reportable payments in the future from this person. For example, you may need to provide updated information if you are a C corporation that elects to be an S corporation, or if you are no longer tax exempt. In addition, you must furnish a new Form W-9 if the name or TIN changes for the account, for example, if the grantor of a grantor trust dies.

Penalties

Failure to furnish TIN. If you fail to furnish your correct TIN to a requester, you are subject to a penalty of $50 for each such failure unless your failure is due to reasonable cause and not to willful neglect.

Civil penalty for false information with respect to withholding. If you make a false statement with no reasonable basis that results in no backup withholding, you are subject to a $500 penalty.

Criminal penalty for falsifying information. Willfully falsifying certifications or affirmations may subject you to criminal penalties including fines and/or imprisonment.

Misuse of TINs. If the requester discloses or uses TINs in violation of federal law, the requester may be subject to civil and criminal penalties.

Specific Instructions

Line 1

You must enter one of the following on this line; **do not** leave this line blank. The name should match the name on your tax return.

If this Form W-9 is for a joint account (other than an account maintained by a foreign financial institution (FFI)), list first, and then circle, the name of the person or entity whose number you entered in Part I of Form W-9. If you are providing Form W-9 to an FFI to document a joint account, each holder of the account that is a U.S. person must provide a Form W-9.

• **Individual.** Generally, enter the name shown on your tax return. If you have changed your last name without informing the Social Security Administration (SSA) of the name change, enter your first name, the last name as shown on your social security card, and your new last name.

Note for ITIN applicant: Enter your individual name as it was entered on your Form W-7 application, line 1a. This should also be the same as the name you entered on the Form 1040 you filed with your application.

• **Sole proprietor.** Enter your individual name as shown on your Form 1040 on line 1. Enter your business, trade, or "doing business as" (DBA) name on line 2.

• **Partnership, C corporation, S corporation, or LLC, other than a disregarded entity.** Enter the entity's name as shown on the entity's tax return on line 1 and any business, trade, or DBA name on line 2.

• **Other entities.** Enter your name as shown on required U.S. federal tax documents on line 1. This name should match the name shown on the charter or other legal document creating the entity. Enter any business, trade, or DBA name on line 2.

• **Disregarded entity.** In general, a business entity that has a single owner, including an LLC, and is not a corporation, is disregarded as an entity separate from its owner (a disregarded entity). See Regulations section 301.7701-2(c)(2). A disregarded entity should check the appropriate box for the tax classification of its owner. Enter the owner's name on line 1. The name of the owner entered on line 1 should never be a disregarded entity. The name on line 1 should be the name shown on the income tax return on which the income should be reported. For example, if a foreign LLC that is treated as a disregarded entity for U.S. federal tax purposes has a single owner that is a U.S. person, the U.S. owner's name is required to be provided on line 1. If the direct owner of the entity is also a disregarded entity, enter the first owner that is not disregarded for federal tax purposes. Enter the disregarded entity's name on line 2. If the owner of the disregarded entity is a foreign person, the owner must complete an appropriate Form W-8 instead of a Form W-9. This is the case even if the foreign person has a U.S. TIN.

Line 2

If you have a business name, trade name, DBA name, or disregarded entity name, enter it on line 2.

Line 3a

Check the appropriate box on line 3a for the U.S. federal tax classification of the person whose name is entered on line 1. Check only one box on line 3a.

IF the entity/individual on line 1 is a(n) . . .	THEN check the box for . . .
• Corporation	Corporation.
• Individual or • Sole proprietorship	Individual/sole proprietor.
• LLC classified as a partnership for U.S. federal tax purposes or • LLC that has filed Form 8832 or 2553 electing to be taxed as a corporation	Limited liability company and enter the appropriate tax classification: P = Partnership, C = C corporation, or S = S corporation.
• Partnership	Partnership.
• Trust/estate	Trust/estate.

Line 3b

Check this box if you are a partnership (including an LLC classified as a partnership for U.S. federal tax purposes), trust, or estate that has any foreign partners, owners, or beneficiaries, and you are providing this form to a partnership, trust, or estate, in which you have an ownership interest. You must check the box on line 3b if you receive a Form W-8 (or documentary evidence) from any partner, owner, or beneficiary establishing foreign status or if you receive a Form W-9 from any partner, owner, or beneficiary that has checked the box on line 3b.

Note: A partnership that provides a Form W-9 and checks box 3b may be required to complete Schedules K-2 and K-3 (Form 1065). For more information, see the Partnership Instructions for Schedules K-2 and K-3 (Form 1065).

If you are required to complete line 3b but fail to do so, you may not receive the information necessary to file a correct information return with the IRS or furnish a correct payee statement to your partners or beneficiaries. See, for example, sections 6698, 6722, and 6724 for penalties that may apply.

Line 4 Exemptions

If you are exempt from backup withholding and/or FATCA reporting, enter in the appropriate space on line 4 any code(s) that may apply to you.

Exempt payee code.

• Generally, individuals (including sole proprietors) are not exempt from backup withholding.

• Except as provided below, corporations are exempt from backup withholding for certain payments, including interest and dividends.

• Corporations are not exempt from backup withholding for payments made in settlement of payment card or third-party network transactions.

• Corporations are not exempt from backup withholding with respect to attorneys' fees or gross proceeds paid to attorneys, and corporations that provide medical or health care services are not exempt with respect to payments reportable on Form 1099-MISC.

The following codes identify payees that are exempt from backup withholding. Enter the appropriate code in the space on line 4.

1—An organization exempt from tax under section 501(a), any IRA, or a custodial account under section 403(b)(7) if the account satisfies the requirements of section 401(f)(2).

2—The United States or any of its agencies or instrumentalities.

3—A state, the District of Columbia, a U.S. commonwealth or territory, or any of their political subdivisions or instrumentalities.

4—A foreign government or any of its political subdivisions, agencies, or instrumentalities.

5—A corporation.

6—A dealer in securities or commodities required to register in the United States, the District of Columbia, or a U.S. commonwealth or territory.

7—A futures commission merchant registered with the Commodity Futures Trading Commission.

8—A real estate investment trust.

9—An entity registered at all times during the tax year under the Investment Company Act of 1940.

10—A common trust fund operated by a bank under section 584(a).

11—A financial institution as defined under section 581.

12—A middleman known in the investment community as a nominee or custodian.

13—A trust exempt from tax under section 664 or described in section 4947.

The following chart shows types of payments that may be exempt from backup withholding. The chart applies to the exempt payees listed above, 1 through 13.

IF the payment is for . . .	THEN the payment is exempt for . . .
• Interest and dividend payments	All exempt payees except for 7.
• Broker transactions	Exempt payees 1 through 4 and 6 through 11 and all C corporations. S corporations must not enter an exempt payee code because they are exempt only for sales of noncovered securities acquired prior to 2012.
• Barter exchange transactions and patronage dividends	Exempt payees 1 through 4.
• Payments over $600 required to be reported and direct sales over $5,000[1]	Generally, exempt payees 1 through 5.[2]
• Payments made in settlement of payment card or third-party network transactions	Exempt payees 1 through 4.

[1] See Form 1099-MISC, Miscellaneous Information, and its instructions.

[2] However, the following payments made to a corporation and reportable on Form 1099-MISC are not exempt from backup withholding: medical and health care payments, attorneys' fees, gross proceeds paid to an attorney reportable under section 6045(f), and payments for services paid by a federal executive agency.

Exemption from FATCA reporting code. The following codes identify payees that are exempt from reporting under FATCA. These codes apply to persons submitting this form for accounts maintained outside of the United States by certain foreign financial institutions. Therefore, if you are only submitting this form for an account you hold in the United States, you may leave this field blank. Consult with the person requesting this form if you are uncertain if the financial institution is subject to these requirements. A requester may indicate that a code is not required by providing you with a Form W-9 with "Not Applicable" (or any similar indication) entered on the line for a FATCA exemption code.

A—An organization exempt from tax under section 501(a) or any individual retirement plan as defined in section 7701(a)(37).

B—The United States or any of its agencies or instrumentalities.

C—A state, the District of Columbia, a U.S. commonwealth or territory, or any of their political subdivisions or instrumentalities.

D—A corporation the stock of which is regularly traded on one or more established securities markets, as described in Regulations section 1.1472-1(c)(1)(i).

E—A corporation that is a member of the same expanded affiliated group as a corporation described in Regulations section 1.1472-1(c)(1)(i).

F—A dealer in securities, commodities, or derivative financial instruments (including notional principal contracts, futures, forwards, and options) that is registered as such under the laws of the United States or any state.

G—A real estate investment trust.

H—A regulated investment company as defined in section 851 or an entity registered at all times during the tax year under the Investment Company Act of 1940.

I—A common trust fund as defined in section 584(a).

J—A bank as defined in section 581.

K—A broker.

L—A trust exempt from tax under section 664 or described in section 4947(a)(1).

M—A tax-exempt trust under a section 403(b) plan or section 457(g) plan.

Note: You may wish to consult with the financial institution requesting this form to determine whether the FATCA code and/or exempt payee code should be completed.

Line 5

Enter your address (number, street, and apartment or suite number). This is where the requester of this Form W-9 will mail your information returns. If this address differs from the one the requester already has on file, enter "NEW" at the top. If a new address is provided, there is still a chance the old address will be used until the payor changes your address in their records.

Line 6

Enter your city, state, and ZIP code.

Part I. Taxpayer Identification Number (TIN)

Enter your TIN in the appropriate box. If you are a resident alien and you do not have, and are not eligible to get, an SSN, your TIN is your IRS ITIN. Enter it in the entry space for the Social security number. If you do not have an ITIN, see *How to get a TIN* below.

If you are a sole proprietor and you have an EIN, you may enter either your SSN or EIN.

If you are a single-member LLC that is disregarded as an entity separate from its owner, enter the owner's SSN (or EIN, if the owner has one). If the LLC is classified as a corporation or partnership, enter the entity's EIN.

Note: See *What Name and Number To Give the Requester*, later, for further clarification of name and TIN combinations.

How to get a TIN. If you do not have a TIN, apply for one immediately. To apply for an SSN, get Form SS-5, Application for a Social Security Card, from your local SSA office or get this form online at *www.SSA.gov*. You may also get this form by calling 800-772-1213. Use Form W-7, Application for IRS Individual Taxpayer Identification Number, to apply for an ITIN, or Form SS-4, Application for Employer Identification Number, to apply for an EIN. You can apply for an EIN online by accessing the IRS website at *www.irs.gov/EIN*. Go to *www.irs.gov/Forms* to view, download, or print Form W-7 and/or Form SS-4. Or, you can go to *www.irs.gov/OrderForms* to place an order and have Form W-7 and/or Form SS-4 mailed to you within 15 business days.

If you are asked to complete Form W-9 but do not have a TIN, apply for a TIN and enter "Applied For" in the space for the TIN, sign and date the form, and give it to the requester. For interest and dividend payments, and certain payments made with respect to readily tradable instruments, you will generally have 60 days to get a TIN and give it to the requester before you are subject to backup withholding on payments. The 60-day rule does not apply to other types of payments. You will be subject to backup withholding on all such payments until you provide your TIN to the requester.

Note: Entering "Applied For" means that you have already applied for a TIN or that you intend to apply for one soon. See also *Establishing U.S. status for purposes of chapter 3 and chapter 4 withholding*, earlier, for when you may instead be subject to withholding under chapter 3 or 4 of the Code.

Caution: A disregarded U.S. entity that has a foreign owner must use the appropriate Form W-8.

Part II. Certification

To establish to the withholding agent that you are a U.S. person, or resident alien, sign Form W-9. You may be requested to sign by the withholding agent even if item 1, 4, or 5 below indicates otherwise.

For a joint account, only the person whose TIN is shown in Part I should sign (when required). In the case of a disregarded entity, the person identified on line 1 must sign. Exempt payees, see *Exempt payee code*, earlier.

Signature requirements. Complete the certification as indicated in items 1 through 5 below.

1. Interest, dividend, and barter exchange accounts opened before 1984 and broker accounts considered active during 1983. You must give your correct TIN, but you do not have to sign the certification.

2. Interest, dividend, broker, and barter exchange accounts opened after 1983 and broker accounts considered inactive during 1983. You must sign the certification or backup withholding will apply. If you are subject to backup withholding and you are merely providing your correct TIN to the requester, you must cross out item 2 in the certification before signing the form.

3. Real estate transactions. You must sign the certification. You may cross out item 2 of the certification.

4. Other payments. You must give your correct TIN, but you do not have to sign the certification unless you have been notified that you have previously given an incorrect TIN. "Other payments" include payments made in the course of the requester's trade or business for rents, royalties, goods (other than bills for merchandise), medical and health care services (including payments to corporations), payments to a nonemployee for services, payments made in settlement of payment card and third-party network transactions, payments to certain fishing boat crew members and fishermen, and gross proceeds paid to attorneys (including payments to corporations).

5. Mortgage interest paid by you, acquisition or abandonment of secured property, cancellation of debt, qualified tuition program payments (under section 529), ABLE accounts (under section 529A), IRA, Coverdell ESA, Archer MSA or HSA contributions or distributions, and pension distributions. You must give your correct TIN, but you do not have to sign the certification.

What Name and Number To Give the Requester

For this type of account:	Give name and SSN of:
1. Individual	The individual
2. Two or more individuals (joint account) other than an account maintained by an FFI	The actual owner of the account or, if combined funds, the first individual on the account[1]
3. Two or more U.S. persons (joint account maintained by an FFI)	Each holder of the account
4. Custodial account of a minor (Uniform Gift to Minors Act)	The minor[2]
5. a. The usual revocable savings trust (grantor is also trustee)	The grantor-trustee[1]
b. So-called trust account that is not a legal or valid trust under state law	The actual owner[1]
6. Sole proprietorship or disregarded entity owned by an individual	The owner[3]
7. Grantor trust filing under Optional Filing Method 1 (see Regulations section 1.671-4(b)(2)(i)(A))**	The grantor*
8. Disregarded entity not owned by an individual	The owner
9. A valid trust, estate, or pension trust	Legal entity[4]
10. Corporation or LLC electing corporate status on Form 8832 or Form 2553	The corporation
11. Association, club, religious, charitable, educational, or other tax-exempt organization	The organization
12. Partnership or multi-member LLC	The partnership
13. A broker or registered nominee	The broker or nominee
14. Account with the Department of Agriculture in the name of a public entity (such as a state or local government, school district, or prison) that receives agricultural program payments	The public entity
15. Grantor trust filing Form 1041 or under the Optional Filing Method 2, requiring Form 1099 (see Regulations section 1.671-4(b)(2)(i)(B))**	The trust

[1] List first and circle the name of the person whose number you furnish. If only one person on a joint account has an SSN, that person's number must be furnished.

[2] Circle the minor's name and furnish the minor's SSN.

[3] You must show your individual name on line 1, and enter your business or DBA name, if any, on line 2. You may use either your SSN or EIN (if you have one), but the IRS encourages you to use your SSN.

[4] List first and circle the name of the trust, estate, or pension trust. (Do not furnish the TIN of the personal representative or trustee unless the legal entity itself is not designated in the account title.)

* **Note:** The grantor must also provide a Form W-9 to the trustee of the trust.

** For more information on optional filing methods for grantor trusts, see the Instructions for Form 1041.

Note: If no name is circled when more than one name is listed, the number will be considered to be that of the first name listed.

Secure Your Tax Records From Identity Theft

Identity theft occurs when someone uses your personal information, such as your name, SSN, or other identifying information, without your permission to commit fraud or other crimes. An identity thief may use your SSN to get a job or may file a tax return using your SSN to receive a refund.

To reduce your risk:

- Protect your SSN,
- Ensure your employer is protecting your SSN, and
- Be careful when choosing a tax return preparer.

If your tax records are affected by identity theft and you receive a notice from the IRS, respond right away to the name and phone number printed on the IRS notice or letter.

If your tax records are not currently affected by identity theft but you think you are at risk due to a lost or stolen purse or wallet, questionable credit card activity, or a questionable credit report, contact the IRS Identity Theft Hotline at 800-908-4490 or submit Form 14039.

For more information, see Pub. 5027, Identity Theft Information for Taxpayers.

Victims of identity theft who are experiencing economic harm or a systemic problem, or are seeking help in resolving tax problems that have not been resolved through normal channels, may be eligible for Taxpayer Advocate Service (TAS) assistance. You can reach TAS by calling the TAS toll-free case intake line at 877-777-4778 or TTY/TDD 800-829-4059.

Protect yourself from suspicious emails or phishing schemes. Phishing is the creation and use of email and websites designed to mimic legitimate business emails and websites. The most common act is sending an email to a user falsely claiming to be an established legitimate enterprise in an attempt to scam the user into surrendering private information that will be used for identity theft.

The IRS does not initiate contacts with taxpayers via emails. Also, the IRS does not request personal detailed information through email or ask taxpayers for the PIN numbers, passwords, or similar secret access information for their credit card, bank, or other financial accounts.

If you receive an unsolicited email claiming to be from the IRS, forward this message to *phishing@irs.gov*. You may also report misuse of the IRS name, logo, or other IRS property to the Treasury Inspector General for Tax Administration (TIGTA) at 800-366-4484. You can forward suspicious emails to the Federal Trade Commission at *spam@uce.gov* or report them at *www.ftc.gov/complaint*. You can contact the FTC at *www.ftc.gov/idtheft* or 877-IDTHEFT (877-438-4338). If you have been the victim of identity theft, see *www.IdentityTheft.gov* and Pub. 5027.

Go to *www.irs.gov/IdentityTheft* to learn more about identity theft and how to reduce your risk.

Privacy Act Notice

Section 6109 of the Internal Revenue Code requires you to provide your correct TIN to persons (including federal agencies) who are required to file information returns with the IRS to report interest, dividends, or certain other income paid to you; mortgage interest you paid; the acquisition or abandonment of secured property; the cancellation of debt; or contributions you made to an IRA, Archer MSA, or HSA. The person collecting this form uses the information on the form to file information returns with the IRS, reporting the above information. Routine uses of this information include giving it to the Department of Justice for civil and criminal litigation and to cities, states, the District of Columbia, and U.S. commonwealths and territories for use in administering their laws. The information may also be disclosed to other countries under a treaty, to federal and state agencies to enforce civil and criminal laws, or to federal law enforcement and intelligence agencies to combat terrorism. You must provide your TIN whether or not you are required to file a tax return. Under section 3406, payors must generally withhold a percentage of taxable interest, dividends, and certain other payments to a payee who does not give a TIN to the payor. Certain penalties may also apply for providing false or fraudulent information.

DIRECT DEPOSIT AUTHORIZATION FORM

Hartfelt Real Estate LLC

Effective Date: January 1, 2026

This form authorizes **Hartfelt Real Estate LLC** ("Brokerage") to deposit commission payments and other approved compensation directly into the account designated below.

SECTION 1 — PAYEE INFORMATION

Legal Name (as shown on W-9): _____

Business Name (if applicable): _____

Phone Number: _____

Email Address: _____

SECTION 2 — BANK ACCOUNT INFORMATION

☐ **Checking Account** ☐ **Savings Account**

Bank Name: _____

Bank Address (optional): _____

Routing Number: _____

Account Number: _____

SECTION 3 — PAYMENT ENTITY CONFIRMATION

☐ Individual / Sole Proprietor

☐ LLC

☐ S-Corporation

☐ C-Corporation

Important: The account holder name **must match** the name on the submitted W-9.
Mismatched information may delay payment.

SECTION 4 — ATTACHMENT REQUIRED

Please attach **one** of the following:

- ☐ Voided check
- ☐ Bank letter or direct deposit form
- ☐ Screenshot of bank account details (routing & account number only)

SECTION 5 — AUTHORIZATION

I authorize **Hartfelt Real Estate LLC** to initiate direct deposit payments to the account listed above. I understand that:

- Payments will be deposited electronically
- It is my responsibility to ensure accurate banking information
- The Brokerage may require updates or verification
- Changes may take up to **5 business days** to process

This authorization remains in effect until revoked in writing.

SECTION 6 — CHANGES OR CANCELLATION

To change or cancel direct deposit:

- Submit a new Direct Deposit Authorization Form
- Allow reasonable processing time before the change takes effect

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SECTION 7 — ACKNOWLEDGMENT & SIGNATURE

I certify that the information provided is accurate and authorize direct deposit as described above.

Signature: _____

Printed Name: _____

Date: _____

BROKERAGE USE ONLY

☐ W-9 Verified

☐ Banking Info Verified

☐ Entered into Payroll / Accounting System

Processed by: _____ Date: _____

MLS & REALTOR® ASSOCIATION ACKNOWLEDGMENT

HartFelt Real Estate LLC

Effective Date: January 1, 2026

This MLS & REALTOR® Association Acknowledgment ("Acknowledgment") is entered into by and between **HartFelt Real Estate LLC** ("Brokerage") and the undersigned licensed real estate professional ("Agent").

1. MLS & ASSOCIATION MEMBERSHIP

Agent acknowledges that MLS participation and REALTOR® association membership are separate from affiliation with Brokerage.

Agent understands and agrees that Agent is solely responsible for:

- applying for and maintaining MLS access, where applicable;
- applying for and maintaining REALTOR® association membership, where applicable;
- paying all MLS and association dues, fees, fines, assessments, and other charges;
- complying with all MLS rules, bylaws, policies, regulations, and data-use requirements applicable to Agent.

Agent understands that failure to maintain required MLS access or association membership may limit or prevent Agent's ability to perform certain brokerage activities.

2. COMPLIANCE WITH MLS RULES

Agent agrees to comply with all applicable MLS rules, regulations, policies, and procedures, including but not limited to rules concerning:

- listing input, completeness, and accuracy;
- timely entry of listings and status changes;
- price changes and closing updates;
- compensation disclosures where applicable;
- showing instructions, cooperation, and access;
- use of photos, remarks, virtual tours, and other media;
- "Coming Soon," delayed marketing, off-market, and similar status categories where applicable;
- office exclusives, exempt listings, or similar categories only where permitted and properly handled under applicable rules.

Agent acknowledges that MLS rules may change from time to time and agrees to remain informed and compliant.

3. DATA USE, CREDENTIALS, AND CONFIDENTIALITY

Agent acknowledges that MLS data is proprietary and confidential and may only be used for authorized real estate purposes in accordance with applicable MLS rules and agreements.

Agent agrees that:

- MLS usernames, passwords, and access credentials are personal and may not be shared;
- unauthorized copying, scraping, exporting, downloading, redistribution, or misuse of MLS data is prohibited;
- MLS data may not be used in any manner inconsistent with MLS rules, participant agreements, or data-use restrictions;
- any MLS access provided through Brokerage remains subject to all applicable MLS restrictions and conditions.

4. FINES, SANCTIONS, AND RESPONSIBILITY

Agent is solely responsible for any MLS or association fines, penalties, sanctions, fees, hearings, or disciplinary actions arising from Agent's conduct, omissions, late filings, inaccurate entries, misuse of data, advertising violations, or other rule violations.

If Brokerage incurs direct costs, fees, penalties, or expenses as a result of Agent's MLS or association violation, Agent agrees to reimburse Brokerage to the extent permitted by applicable law and any written agreements between the parties.

Repeated, serious, or unresolved violations may result in corrective action by Brokerage, including suspension of MLS-related privileges, internal compliance review, or termination of affiliation.

5. INVESTIGATIONS, NOTICES, AND INQUIRIES

Agent agrees to promptly notify Brokerage of:

- MLS warning notices;

- citations, fines, or violation notices;
- REALTOR® association complaints;
- ethics complaints or arbitration matters;
- MLS or association investigations, hearings, or disciplinary proceedings.

Agent further agrees to cooperate fully with Brokerage in connection with any MLS inquiry, association proceeding, ethics complaint, arbitration matter, or internal compliance review.

Failure to promptly disclose such matters to Brokerage may result in disciplinary action.

6. NO BROKERAGE GUARANTEE OR LIABILITY

Agent acknowledges that Brokerage does not guarantee MLS access, association membership, uninterrupted system availability, or approval of any application or renewal.

Brokerage is not responsible for:

- MLS or association membership decisions;
- denials, suspensions, or terminations of Agent's MLS or association access;
- fines, sanctions, or penalties imposed on Agent by MLS or association authorities;
- system outages, vendor issues, or third-party platform restrictions beyond Brokerage's control.

7. TERMINATION OF AFFILIATION

Upon termination of Agent's affiliation with Brokerage:

- Agent's MLS and association records must be updated promptly as required;
- Agent shall immediately stop using Brokerage MLS-related access, Brokerage branding, and Brokerage-authorized listing materials except as otherwise permitted by law;
- Agent remains responsible for any outstanding MLS or association dues, fines, obligations, or pending matters related to Agent's conduct.

8. RELATIONSHIP TO OTHER POLICIES

This Acknowledgment supplements, and does not replace, any independent contractor agreement, advertising policy, compliance policy, team access policy, MLS participation agreement, or other written agreement between Agent and Brokerage.

9. ACKNOWLEDGMENT & ACCEPTANCE

By signing below, Agent acknowledges that Agent has received, read, understands, and agrees to comply with this MLS & REALTOR® Association Acknowledgment.

SIGNATURES

AGENT

Signature: _____

Printed Name: _____

License #: _____

Date: _____

BROKERAGE

HartFelt Real Estate LLC

By: _____

Name: Antione Hart

Title: Broker of Record / Authorized Representative

Date: _____

CYBERSECURITY & WIRE FRAUD DISCLOSURE

Hartfelt Real Estate LLC

Effective Date: December 12, 2025

This Cybersecurity & Wire Fraud Disclosure ("Disclosure") is provided by **Hartfelt Real Estate LLC** ("Brokerage") to address risks related to electronic communications, cybersecurity threats, and wire fraud.

1. RISK OF CYBER FRAUD

Cybercrime, email hacking, and wire fraud are increasing in real estate transactions. Criminals may attempt to:

- Intercept or spoof emails
- Impersonate agents, brokers, attorneys, lenders, or title companies
- Send false wire instructions or payment requests
- Alter legitimate wiring information

These attacks often appear legitimate and professional.

2. NO WIRE INSTRUCTIONS BY EMAIL

IMPORTANT RULE:

Hartfelt Real Estate LLC will NEVER send or change wire instructions by email, text message, or social media.

Any email, text, or message requesting funds or providing wire instructions **should be treated as fraudulent unless independently verified**.

3. VERIFICATION REQUIREMENT

Before sending any funds, all parties must:

- **Independently verify wire instructions by phone**
- Use a **known, trusted phone number** (not one provided in an email)

- Confirm instructions directly with the title company, attorney, or escrow agent

Do not rely on:

- Email signatures
- Reply emails
- Last-minute changes
- Pressure tactics (“urgent,” “final,” “closing today”)

4. AGENT COMMUNICATION RULES

Agents of the Brokerage:

- Are prohibited from sending wire instructions
- May not request funds via email or text
- Must immediately report suspicious messages using the **Brokerage Incident Report Form**
- Must not forward wire instructions received from third parties

5. LIMITATION OF LIABILITY

To the fullest extent permitted by law:

- The Brokerage is **not responsible** for losses resulting from:
    - Cybercrime
    - Email compromise
    - Wire fraud
    - Third-party system breaches
- Clients are solely responsible for verifying wiring instructions prior to sending funds.

6. CLIENT RESPONSIBILITY

Clients acknowledge that:

- Electronic communications are inherently insecure
- They are responsible for verifying payment instructions
- Failure to verify instructions may result in irretrievable loss of funds

7. REPORTING SUSPICIOUS ACTIVITY

If suspicious activity is suspected:

1. **Stop all payments immediately**
2. Contact the Brokerage and title company
3. File a report with:
    - Bank fraud department
    - FBI Internet Crime Complaint Center (IC3.gov)

Time is critical.

8. NO GUARANTEE OF SECURITY

While reasonable safeguards are used, the Brokerage:

- Cannot guarantee the security of electronic communications
- Does not warrant the integrity of third-party systems

9. ACKNOWLEDGMENT & ACCEPTANCE

By signing below, the undersigned acknowledges:

- Awareness of cybersecurity and wire fraud risks
- Understanding of verification requirements
- Acceptance of responsibility to verify instructions

SIGNATURES

CLIENT / AGENT:

Signature: _____

Printed Name: _____

Date: _____

BROKERAGE:

Hartfelt Real Estate LLC

By: _____

Name: Antione Hart

Title: Broker of Record

Date: December 12, 2025

NON-SOLICITATION & CONFIDENTIALITY AGREEMENT

Hartfelt Real Estate LLC

Effective Date: January 1, 2026

This Non-Solicitation & Confidentiality Agreement ("Agreement") is entered into by and between **Hartfelt Real Estate LLC** ("Brokerage") and the undersigned licensed real estate professional ("Agent").

1. PURPOSE

This Agreement is intended to protect the Brokerage's:

- Confidential information
- Client relationships
- Leads, data, and business goodwill

While allowing Agent to continue working lawfully in the real estate industry.

2. CONFIDENTIAL INFORMATION

"Confidential Information" includes, but is not limited to:

- Brokerage-generated leads and contact information
- CRM data, SmartBuy data, and analytics
- Client lists, transaction files, pricing, and strategies
- Marketing systems, funnels, and processes
- Business plans, training materials, policies, and procedures
- Non-public financial or operational information

Confidential Information does **not** include information that is:

- Publicly available through no fault of Agent
- Independently developed without use of Brokerage data

3. CONFIDENTIALITY OBLIGATIONS

Agent agrees to:

- Keep all Confidential Information strictly confidential
- Use Confidential Information **only** for Brokerage business
- Not disclose, copy, export, sell, or misuse Confidential Information
- Protect Confidential Information with reasonable care

These obligations apply **during and after** affiliation.

4. NON-SOLICITATION OF CLIENTS & LEADS

During affiliation and for **twelve (12) months following termination**, Agent agrees not to:

- Solicit, divert, or attempt to do business with:
  - Brokerage-generated leads
  - SmartBuy leads
  - Clients introduced to Agent through the Brokerage
- Encourage such clients or leads to terminate or transfer their relationship with the Brokerage

This restriction applies **only to Brokerage-generated relationships**, not the Agent's pre-existing personal contacts.

5. NON-SOLICITATION OF AGENTS & STAFF

For **twelve (12) months following termination**, Agent agrees not to:

- Recruit, solicit, or induce Brokerage agents, staff, or contractors to leave the Brokerage
- Assist a third party in recruiting Brokerage personnel

6. NO NON-COMPETE

Nothing in this Agreement:

- Prohibits Agent from working in real estate after termination
- Restricts Agent from representing their own independently-sourced clients
- Creates a non-compete restriction

This Agreement is limited to **non-solicitation and confidentiality only**.

7. RETURN OF PROPERTY & DATA

Upon termination or request, Agent must:

- Return all Brokerage property, files, and materials
- Permanently delete Brokerage data from personal devices and accounts
- Certify compliance if requested

8. INJUNCTIVE RELIEF

Agent acknowledges that:

- A breach may cause irreparable harm
- The Brokerage is entitled to **injunctive relief** in addition to monetary damages
- No bond is required to seek such relief, to the extent permitted by law

9. SURVIVAL

Sections relating to confidentiality, non-solicitation, remedies, and enforcement **survive termination** of affiliation.

10. GOVERNING LAW

This Agreement shall be governed by the laws of the **State of Florida**.

11. SEVERABILITY

If any provision is found unenforceable, the remainder shall remain in full force and effect and be enforced to the maximum extent permitted by law.

12. ACKNOWLEDGMENT & ACCEPTANCE

By signing below, Agent acknowledges understanding and acceptance of this Agreement.

SIGNATURES

AGENT:

Signature: _____

Printed Name: _____

License #: _____

Date: _____

BROKERAGE:

Hartfelt Real Estate LLC

By: _____

Name: Antione Hart

Title: Broker of Record

Date:

HARTFELT REAL ESTATE

TEAM ACCESS & CONDUCT AGREEMENT

This Team Access & Conduct Agreement ("Agreement") is made effective as of ***, 20, by and between HartFelt Real Estate ("Brokerage") and ****_____** ("Associate").

This Agreement sets forth the standards, expectations, and conditions governing Associate's access to Brokerage office space, systems, technology, branding, materials, and internal resources.

1. Purpose

Brokerage may provide Associate with access to office space, technology, support resources, internal systems, marketing materials, training tools, and other Brokerage resources in connection with Associate's affiliation with Brokerage.

Associate acknowledges that such access is provided to support Associate's business activities under Brokerage supervision and agrees to use all Brokerage resources professionally, responsibly, securely, and in compliance with Brokerage policy, Florida law, Florida Real Estate Commission rules, and applicable MLS requirements.

2. Office Access

If office access is provided, such access is a revocable privilege and not a guaranteed right.

Associate agrees that:

- office access shall be subject to Brokerage hours, procedures, and operational needs;
- Brokerage may revise office hours, guest policies, security procedures, and access protocols at any time;
- Brokerage may suspend, limit, or revoke access for business, operational, security, or compliance reasons;
- Associate shall use the office in a professional, respectful, and businesslike manner at all times.

Associate shall not use Brokerage premises for unlawful activity, disruptive conduct, unauthorized business activity, or any purpose inconsistent with Brokerage standards.

3. Professional Conduct Standards

Associate shall conduct himself or herself in a manner consistent with the professional standards of HartFelt Real Estate.

Associate agrees to:

- treat clients, prospects, staff, agents, vendors, and visitors with professionalism and respect;
- maintain appropriate business decorum in the office and in all Brokerage-related settings;
- avoid conduct that could damage Brokerage's reputation, relationships, compliance standing, or work environment.

The following conduct is prohibited:

- harassment, discrimination, retaliation, intimidation, or threatening behavior;
- dishonesty, fraud, misrepresentation, or deceptive conduct;
- abusive, disruptive, or unprofessional behavior;
- misuse of Brokerage resources, staff, or systems;
- any unlawful or unethical conduct.

Violation of this section may result in disciplinary action, suspension of access, or termination of affiliation in accordance with Brokerage policy and applicable agreements.

4. Brokerage Supervision and Licensed Activity

Associate acknowledges that all licensed real estate activity must be conducted under the supervision of Brokerage and in accordance with Brokerage policy and applicable law.

Associate shall timely submit transaction documents, disclosures, communications, and other required materials in the manner designated by Brokerage.

Nothing in this Agreement authorizes Associate to bind Brokerage, execute documents on behalf of Brokerage, make legal commitments for Brokerage, or act outside the scope of Brokerage supervision.

5. Branding, Advertising, and Public Representation

Brokerage branding, logos, templates, marketing materials, and brand assets may be used only as authorized by Brokerage.

Associate agrees that:

- all advertising, marketing, and public-facing content related to licensed real estate activity must comply with Brokerage policy, Florida law, FREC rules, and MLS requirements;
- no false, misleading, deceptive, or unauthorized advertising may be published or distributed;
- any team, group, or branded marketing must receive Brokerage approval where required;
- Brokerage may require Associate to revise or remove any marketing or advertising at any time for compliance or brand-standard reasons.

Associate shall not represent himself or herself as a separate brokerage or independent real estate company while affiliated with Brokerage.

6. Technology, Systems, and Equipment

Any Brokerage-provided or Brokerage-approved technology, including email accounts, CRM access, transaction management platforms, shared drives, phone numbers, templates, software, devices, or communication systems, shall remain the property of Brokerage or its licensors.

Associate agrees:

- to use Brokerage systems only for authorized business purposes;
- to maintain the security of usernames, passwords, and access credentials;
- not to share access credentials without authorization;
- not to copy, export, transfer, or misuse Brokerage data except as authorized for Brokerage business;
- to immediately report any lost device, security incident, suspected breach, or unauthorized access.

Brokerage may monitor, restrict, suspend, or terminate access to Brokerage systems and equipment to the extent permitted by law and Brokerage policy.

7. Confidentiality

Associate shall maintain the confidentiality of all non-public Brokerage information, including but not limited to:

- client and prospect information;
- lead lists and CRM data;
- internal communications;
- transaction details not authorized for public release;
- training materials, templates, forms, and internal processes;
- operational, vendor, staffing, and business information.

Associate may use confidential information only for authorized Brokerage purposes and may not disclose, copy, misuse, or exploit such information for personal benefit or for the benefit of any third party.

These confidentiality obligations shall survive the termination of Associate's affiliation with Brokerage.

8. Leads, Records, and Brokerage Materials

Brokerage records, forms, templates, internal checklists, company-generated leads, CRM records, transaction files, internal communications, and marketing materials remain Brokerage property to the extent permitted by law and Brokerage policy.

Associate shall not remove, transfer, sell, copy, distribute, or retain Brokerage confidential records or company-generated data except as authorized in writing.

Upon request or upon termination of affiliation, Associate shall promptly return or surrender all Brokerage property and materials, including any physical or electronic copies in Associate's possession or control.

9. Recording, Content Capture, and Privacy

Associate may not record office meetings, calls, training sessions, video conferences, internal discussions, or private conversations without prior authorization and any consent required by law.

Associate may not post, publish, livestream, or otherwise share internal office activity, non-public transaction information, staff interactions, or confidential Brokerage content without prior Brokerage approval.

10. Guests and Use of Shared Space

Associate may bring clients, guests, vendors, or service providers into Brokerage space only in accordance with Brokerage procedures and standards.

Associate is responsible for the conduct of any guest brought into Brokerage space and for protecting confidential information at all times.

Shared work areas, conference rooms, and common areas must be used respectfully, professionally, and in accordance with Brokerage scheduling procedures.

11. No Guarantee of Ongoing Access or Support

Associate understands that access to office space, staff support, technology, systems, branding resources, lead opportunities, and internal platforms may change at any time based on Brokerage operations, staffing, business decisions, and compliance needs.

Nothing in this Agreement guarantees permanent access to any particular Brokerage resource, support service, workspace, or system.

12. Return of Property and Deactivation of Access

Upon request by Brokerage, suspension, or termination of affiliation, Associate shall immediately:

- cease using Brokerage branding, materials, and marketing assets;
- return keys, access devices, signs, printed materials, equipment, and documents;
- surrender or discontinue use of Brokerage-issued email addresses, phone numbers, and system access;
- stop accessing Brokerage platforms, records, and databases;
- return or destroy confidential materials as directed by Brokerage.

13. Violations and Corrective Action

If Associate violates this Agreement, Brokerage may take any action it deems appropriate, including:

- issuing a warning or corrective instruction;
- suspending office or system access;
- withdrawing administrative or marketing support;
- conducting an internal compliance review;
- terminating affiliation in accordance with any applicable agreement or Brokerage policy.

14. Relationship to Other Agreements

This Agreement supplements, and does not replace, any independent contractor agreement, commission agreement, policy acknowledgment, E&O acknowledgment, MLS acknowledgment, or other written agreement between Associate and Brokerage.

If any provision of this Agreement conflicts with applicable law, applicable law shall control. If any provision is held unenforceable, the remaining provisions shall remain in effect to the fullest extent permitted by law.

15. Governing Law

This Agreement shall be governed by and construed in accordance with the laws of the State of Florida.

16. Acknowledgment

Associate acknowledges that he or she has read this Agreement, understands it, and agrees to comply with it as a condition of access to Brokerage resources and continued affiliation with Brokerage.

SIGNATURES

HARTFELT REAL ESTATE

By: _____

Name: Antione Hart

Title: Broker / Authorized Representative

Date: _____

ASSOCIATE

Name: _____

Signature: _____

Date: _____

ERRORS & OMISSIONS (E&O) INSURANCE ACKNOWLEDGMENT

HartFelt Real Estate LLC

Effective Date: January 1, 2026

This Errors & Omissions (E&O) Insurance Acknowledgment ("Acknowledgment") is entered into by and between **HartFelt Real Estate LLC** ("Brokerage") and the undersigned licensed real estate professional ("Agent").

1. ACKNOWLEDGMENT OF COVERAGE

Agent acknowledges that Brokerage maintains a professional Errors & Omissions ("E&O") insurance policy intended to provide coverage for certain claims arising out of professional real estate brokerage services performed in the course of Brokerage activities.

Agent understands that:

- any coverage is subject to the terms, conditions, exclusions, endorsements, limits, and deductibles of the applicable insurance policy;
- coverage is not unlimited and does not apply to every act, omission, claim, or circumstance;
- Brokerage may change carriers, policy terms, limits, or coverage structure from time to time.

2. NO GUARANTEE OF COVERAGE

Agent expressly acknowledges and agrees that:

- inclusion under Brokerage's E&O policy does not guarantee coverage for any specific claim, event, or allegation;
- certain matters may be excluded from coverage, including but not limited to fraud, intentional misconduct, criminal acts, dishonest conduct, undisclosed conflicts, knowing violations of law, or conduct outside the scope of covered professional services;
- all coverage determinations, including whether a claim is accepted, defended, limited, or denied, are made solely by the insurance carrier in accordance with the policy terms.

3. AGENT RESPONSIBILITIES

Agent agrees to:

- perform all real estate and brokerage-related services in compliance with applicable law, Brokerage policy, and professional standards;
- promptly notify Brokerage in writing of any actual or potential claim, complaint, demand, threat, subpoena, legal notice, regulatory inquiry, or circumstance that may reasonably give rise to an E&O claim;
- fully cooperate with Brokerage, the insurance carrier, legal counsel, and claims representatives in the investigation, reporting, defense, and resolution of any claim or potential claim;
- preserve all relevant communications, records, notes, and documents;
- refrain from making admissions of liability, agreeing to settlements, or assuming obligations on behalf of Brokerage without prior written authorization.

Agent understands that failure to timely report a claim or potential claim may prejudice or impair available coverage.

4. DEDUCTIBLES, FINES, AND UNINSURED LOSSES

Agent acknowledges that:

- E&O insurance may not cover regulatory fines, penalties, sanctions, chargebacks, fee disputes, commission disputes, or all business losses;

- Brokerage may require Agent to be responsible for deductibles, uninsured losses, direct claim-related costs, or other amounts attributable to Agent's conduct to the extent permitted by law and any written agreement between Agent and Brokerage;
- any separate E&O deductible responsibility addendum or commission agreement may further govern Agent's financial responsibility.

5. ADDITIONAL INSURANCE

Agent understands that Brokerage's E&O policy may not cover all risks or all claims involving Agent.

Agent may obtain individual supplemental insurance or other optional coverage at Agent's own expense if Agent determines such coverage is appropriate.

6. TERMINATION OF AFFILIATION

Agent acknowledges that:

- E&O coverage may not apply to acts or omissions occurring after termination of Agent's affiliation with Brokerage;
- claims arising from acts or omissions occurring during Agent's affiliation may still be subject to policy terms, reporting requirements, exclusions, and claim-made coverage conditions, if applicable;
- termination of affiliation does not relieve Agent of the duty to promptly report known claims or potential claims relating to conduct during affiliation.

7. NO MODIFICATION OF POLICY / NO THIRD-PARTY RIGHTS

This Acknowledgment is provided for notice and internal compliance purposes only.

This Acknowledgment:

- does not modify, expand, or replace the actual terms of any insurance policy;
- does not create insurance coverage where none otherwise exists;
- does not create any contractual or legal rights in favor of any third party.

In the event of any inconsistency between this Acknowledgment and the actual insurance policy, the actual insurance policy shall control.

8. RELATIONSHIP TO OTHER AGREEMENTS

This Acknowledgment supplements, and does not replace, any independent contractor agreement, policy manual, E&O deductible responsibility addendum, commission agreement, compliance policy, or other written agreement between Agent and Brokerage.

9. ACKNOWLEDGMENT & ACCEPTANCE

By signing below, Agent acknowledges that Agent:

- has been informed of the existence of Brokerage E&O coverage;
- understands that such coverage is limited and subject to the policy's terms and conditions;
- understands that coverage is not guaranteed for any particular matter;
- agrees to comply with all reporting, cooperation, and risk-management requirements applicable to potential claims.

SIGNATURES

AGENT

Signature: _____

Printed Name: _____

License #: _____

Date: _____

BROKERAGE

HartFelt Real Estate LLC

By: _____

Name: Antione Hart

Title: Broker of Record / Authorized Representative

Date: _____

AGENT E&O DEDUCTIBLE RESPONSIBILITY ADDENDUM

HartFelt Real Estate LLC

Effective Date: January 1, 2026

This Agent E&O Deductible Responsibility Addendum ("Addendum") supplements the Independent Contractor Agreement, the Errors & Omissions (E&O) Insurance Acknowledgment, and other applicable written agreements and policies between **HartFelt Real Estate LLC** ("Brokerage") and the undersigned licensed real estate professional ("Agent").

1. PURPOSE

The purpose of this Addendum is to allocate responsibility for certain Errors & Omissions insurance deductibles, uninsured losses, and related claim costs arising from claims attributable to the Agent's conduct, to the extent permitted by applicable law and the parties' written agreements.

2. DEDUCTIBLE RESPONSIBILITY

If a claim, demand, arbitration, lawsuit, regulatory matter, or other proceeding is made against Brokerage and/or Agent, and the applicable E&O insurance carrier applies a deductible, the following shall apply:

- Agent shall be responsible for deductible amounts attributable to Agent's acts, omissions, errors, negligence, misrepresentations, disclosure failures, document handling failures, or violations of Brokerage policy.
- Agent's responsibility under this Section shall be capped at **Five Thousand Dollars ($5,000.00)** per claim, regardless of the total deductible imposed by the carrier, except as provided in Section 3 below.

- If more than one licensee or party contributed to the claim, Brokerage may allocate deductible responsibility in a reasonable manner based on the facts known to Brokerage, the nature of the conduct involved, and the relative responsibility of the persons involved.

3. EXCLUDED OR UNINSURED LOSSES; NO CAP

The cap set forth in Section 2 shall not apply to losses, deductibles, costs, or liabilities arising from conduct that is excluded from coverage or otherwise outside the intended protection of Brokerage's E&O policy, including but not limited to:

- fraud;
- intentional misconduct;
- criminal acts;
- dishonest conduct;
- willful violations of law, MLS rules, fair housing requirements, or Brokerage policy;
- unauthorized activity outside the scope of Brokerage-approved services;
- knowing misrepresentation;
- failure to timely report a claim, complaint, demand, or circumstance that may reasonably give rise to a claim, where such delay prejudices coverage or increases loss.

In such cases, Agent may be responsible for the full deductible, uninsured loss, direct claim-related costs, defense costs not covered by insurance, settlements, judgments, fines, penalties, or other related amounts, to the extent permitted by law.

4. PAYMENT TERMS

Any amount due from Agent under this Addendum shall be payable within thirty (30) days after written notice from Brokerage, unless Brokerage agrees in writing to another arrangement.

To the extent permitted by law and any other applicable written agreement, Brokerage may:

- offset amounts owed under this Addendum against commissions or other sums otherwise payable to Agent;

- require reimbursement directly from Agent;
- allow a written repayment arrangement in Brokerage's discretion.

5. BROKERAGE DETERMINATION; INSURANCE CARRIER RIGHTS

Agent acknowledges that:

- the insurance carrier retains sole authority to determine coverage, defense, deductible application, exclusions, and payment decisions under the policy;
- Brokerage may make reasonable internal determinations regarding allocation of deductible responsibility and reimbursement obligations under this Addendum;
- this Addendum does not create, expand, or modify insurance coverage.

6. NO WAIVER OF OTHER RIGHTS

This Addendum does not limit Brokerage's right to pursue any other remedy available under law, equity, insurance policy terms, or other written agreements between Brokerage and Agent.

7. SURVIVAL

Agent's obligations under this Addendum shall survive termination of Agent's affiliation with Brokerage with respect to any claim, matter, or circumstance arising out of acts or omissions occurring during the period of Agent's affiliation with Brokerage.

8. GOVERNING LAW

This Addendum shall be governed by and construed in accordance with the laws of the State of Florida.

9. ACKNOWLEDGMENT & ACCEPTANCE

By signing below, Agent acknowledges that Agent has read, understands, and agrees to this Addendum and understands that it is a condition of affiliation with Brokerage.

SIGNATURES

AGENT

Signature: _____

Printed Name: _____

License #: _____

Date: _____

BROKERAGE

HartFelt Real Estate LLC

By: _____

Name: Antione Hart

Title: Broker of Record / Authorized Representative

Date: _____

INDEPENDENT CONTRACTOR CLASSIFICATION STATEMENT

HartFelt Real Estate LLC

Effective Date: January 1, 2026

This Independent Contractor Classification Statement ("Statement") sets forth the relationship between **HartFelt Real Estate LLC** ("Brokerage") and its affiliated licensed real estate professionals ("Agents").

1. INDEPENDENT CONTRACTOR STATUS

All licensed real estate professionals affiliated with Brokerage, including sales associates and broker associates, are affiliated as independent contractors and not as employees of Brokerage.

Nothing in this Statement, any commission agreement, policy, handbook, addendum, or other Brokerage document shall be construed to create an employer-employee relationship, partnership, joint venture, or other business relationship between Brokerage and Agent except for the licensed brokerage relationship required by applicable real estate law.

2. NO EMPLOYEE BENEFITS

Agents are not entitled to employee wages, salary, overtime, or employee benefits from Brokerage, including but not limited to:

- health insurance;
- retirement benefits;
- paid vacation or paid leave;

- unemployment benefits;
- workers’ compensation benefits, except to the extent otherwise required by law.

Agents are compensated solely through commission-based or other permitted written compensation arrangements approved by Brokerage.

3. TAX RESPONSIBILITIES

Agents are solely responsible for their own:

- federal, state, and local tax obligations;
- self-employment taxes;
- estimated tax payments;
- business registrations, filings, and financial obligations applicable to their independent contractor status.

Brokerage does not withhold payroll taxes on behalf of Agents and will issue applicable tax reporting forms, including IRS Form 1099-NEC or any successor form, as required by law.

4. CONTROL, SUPERVISION, AND REGULATORY OVERSIGHT

Subject to applicable law and Brokerage policy, Agents generally retain discretion over their work schedule, prospecting efforts, business development activities, and day-to-day methods of conducting their business.

Agent acknowledges, however, that Brokerage must supervise licensed real estate activities to the extent required by law, regulation, MLS requirements, and Brokerage policy. Such supervision may include, without limitation:

- transaction review and oversight;

- advertising and marketing compliance;
- document submission requirements;
- recordkeeping procedures;
- legal and regulatory compliance;
- policy enforcement and risk management.

Such regulatory and brokerage oversight is intended to ensure legal and ethical compliance and shall not, by itself, be interpreted as creating an employment relationship.

5. BUSINESS EXPENSES

Unless otherwise expressly agreed in writing, Agents are responsible for their own business expenses, including but not limited to:

- licensing fees and renewal costs;
- post-licensing and continuing education;
- MLS and association dues, fees, fines, and assessments;
- marketing and advertising expenses;
- personal technology, devices, software, and subscriptions not expressly provided by Brokerage;
- transportation, travel, meals, and general business expenses.

6. NO GUARANTEE OF INCOME OR BUSINESS OPPORTUNITY

Brokerage does not guarantee that Agent will receive leads, clients, transactions, office space, support services, income, or any minimum level of business opportunity.

Agent understands that income, if any, depends on Agent’s own efforts, transactions completed, applicable commission agreements, and Brokerage receipt of earned compensation.

7. AFFILIATION AND LICENSED ACTIVITY

While affiliated with Brokerage, Agent must conduct licensed real estate activity through Brokerage and in accordance with applicable law, Brokerage policy, and any written agreements between the parties.

Nothing in this Statement authorizes Agent to conduct licensed brokerage activity outside of Brokerage while affiliated with Brokerage unless expressly permitted by law and approved in writing where required.

8. TERMINATION OF AFFILIATION

Either Brokerage or Agent may terminate the affiliation relationship in accordance with the applicable Independent Contractor Agreement, commission agreement, or other governing written policies and agreements.

Termination of affiliation does not create, imply, or convert the relationship into employment.

9. COMPLIANCE WITH LAW

This Statement is intended to be interpreted consistently with applicable law, including:

- Chapter 475, Florida Statutes;
- applicable DBPR and FREC rules;
- applicable tax laws;
- other applicable labor and business laws.

If any provision of this Statement is determined to be invalid or unenforceable, the remaining provisions shall remain in effect to the fullest extent permitted by law.

10. ACKNOWLEDGMENT

By signing below, Agent acknowledges that Agent:

- understands that Agent is affiliated with Brokerage as an independent contractor and not as an employee;
- understands Agent's responsibility for taxes, expenses, and independent business obligations;
- understands that Brokerage exercises regulatory and compliance oversight required for licensed real estate activity;
- agrees that this Statement is part of the overall affiliation and onboarding documentation between Agent and Brokerage.

SIGNATURES

AGENT

Signature: _____

Printed Name: _____

License #: _____

Date: _____

BROKERAGE

HartFelt Real Estate LLC

By: _____

Name: Antione Hart

Title: Broker of Record / Authorized Representative

Date: _____